

STATEMENT OF WORK

(SOW)

DAY REPORTING CENTER

April 2023

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Program Statements may be found on the Bureau of Prisons website, www.bop.gov. It is the BOP's expectation that the contractor maintains and implements subsequent policy updates as they occur. This will require the contractor to routinely review program statements to ensure they are utilizing the most current version. Additional guidance or interpretation of policy statements is at the discretion of the Bureau.

CONTRACTOR REQUIRED TRAINING

(Referenced in the Statement of Work)

<u>Training</u>	<u>Chapter Referenced</u>
Staff will annually review the contractor's operations manual. This review will be documented.	1
Staff will be provided 20 hours of annual training on required topics.	2
Staff must receive 40 hours of training on duties and responsibilities prior to working with federal offenders. Sixteen of these hours may be on the job training under direct staff supervision.	2
A minimum of one key staff will attend BOP training when offered.	2
Staff will acknowledge receipt and understanding of contractor's Employee Standards of Conduct, prior to working with federal offenders.	2
The contractor will develop and implement a comprehensive staff training program addressing the facility's sexual abuse/assault/misconduct prevention and intervention program.	2
The contractor will provide a brief orientation program for all volunteers and provide specific written guidance in the format of a "Volunteer Manual."	2
The contractor will train all staff in emergency procedures within one week of their initial employment. In addition, the contractor will include emergency training in annual refresher training.	4
The contractor will train all staff in the proper handling and use of all hazardous, toxic, caustic, and flammable materials within two weeks of initial employment, whenever a new hazard is introduced into the work area, and annually thereafter.	7

The contractor will train staff on proper techniques for offender pat searches, vehicle, and common area searches within the first week of employment and annually thereafter. 11

The rules of conduct and sanctions for offender discipline infractions will be defined in writing and communicated to all staff. 12

Staff must be familiar with the Administrative Remedy Program Statement prior to working with federal offenders. 13

EXPLANATION OF TERMS

AVERAGE MONTHLY POPULATION (AMP) - The days invoiced on the monthly bill for three consecutive months added together and divided by three.

BUREAU OF PRISONS (BOP) - A component of the Department of Justice responsible for federal offenders sentenced to a term of imprisonment.

BOP WEBSITE - www.bop.gov

CALIFORNIA TECHNICAL BULLETINS - The California Bureau of Home Furnishings and Thermal Insulation (BHFTI) enforces California statutes and regulations governing upholstered furniture, bedding, and thermal insulation industries.

The bulletins referenced in the SOW are published by the California BHFTI. The BHFTI bulletins are available by contacting the following address: 3485 Orange Grove Avenue; North Highlands, California, 95660; (916) 574-2041.

SUPERVISORY COMMUNITY TREATMENT COORDINATOR (SCTC) - The BOP employee who is responsible for placing offenders in Community Treatment Services, procuring treatment, monitoring treatment providers, certifying bills, ensuring quality control, and performing liaison activities among federal institutional programs, U.S. Probation, and contract community treatment providers.

CONTRABAND - Anything not authorized for retention by the facility rules and regulations or not issued by authorized staff.

CONTRACT AWARD DATE - The date the Contracting Officer signs the contract.

CONTRACT EMPLOYEE - Individuals hired by the contractor to perform services required by the SOW. The terms contract employee, employee, staff, and contract staff are used interchangeably throughout this document.

CONTRACT OVERSIGHT SPECIALIST (COS) - A BOP employee who, under the direction of the RRM, inspects and monitors contract compliance.

CONTRACTING OFFICER (CO) - A BOP employee with the authority to enter into, administer, negotiate, award, cancel, and/or terminate contracts, and make related determinations and findings on behalf of the United States Government.

CONTRACTING OFFICER'S REPRESENTATIVE (COR) - A BOP employee, designated in writing by a CO (ordinarily an RRM), to act as an authorized representative in monitoring and administering a contract. The COR acts as a technical liaison between the contractor and the CO on contracting matters (see Section G of the solicitation for an expanded outline of these authorities and responsibilities).

CONTRACTOR - The individual, partnership, corporation, or other legal entity who has been awarded a contract by the BOP. "Contractor employees," "staff," "provider", and "contractor" are used interchangeably throughout this document. All staff from the Chief Executive Officer (CEO) level to line staff is included.

DAY REPORTING CENTER (DRC) - This refers to the location in which the contractor's programs are operated. A DRC may also be called a facility, or center.

DISABILITY - A person with a disability has a permanent physical or mental impairment that substantially limits one or more major life activities; has a record of such impairment; or is perceived as having such impairment.

DISCIPLINE HEARING OFFICER (DHO) - A BOP employee responsible for conducting fact-finding hearings covering alleged acts of misconduct and violations of prohibited acts including those acts which could result in criminal charges.

EMERGENCY - Any significant disruption of normal facility procedures, policy, or activities including but not limited to adverse weather, bomb threat, disturbance, escape, fire, hostage situation, food strike, etc.

ELECTRONIC MONITORING EQUIPMENT - Equipment which monitors a federal offender's compliance with the DRC Electronic Monitoring Program's conditions.

FEDERAL LOCATION MONITORING PROGRAM (FLM) - A program wherein the United States Probation office, through an agreement with the BOP, monitors offenders in the community.

HOME CONFINEMENT - A generic term used to cover all circumstances in which a federal offender is required to remain at home during non-working hours of the day.

INDIGENT - An individual who is (i) without income, or (ii) whose income is below the Federal Poverty guidelines for the local area, as published by the Department of Health and Human Services, or (iii) without sufficient resources to provide for basic needs (e.g., housing, food, clothing, and transportation). An individual's liabilities (e.g., restitution, fees, child support obligations) should be considered when determining indigence.

INMATE - See offender.

INVESTIGATING OFFICER - Refers to the disciplinary process. The term "Investigating Officer" refers to an employee of supervisory level who conducts the investigation concerning alleged charge(s) of offender misconduct. The Investigating Officer may not be the employee reporting the incident or one who was involved in the incident in question.

NFPA, NATIONAL FIRE PROTECTION ASSOCIATION - The National Fire Protection Association (NFPA), headquartered in Quincy, Massachusetts, USA, is an international, nonprofit, membership organization founded in 1896 to protect people, their property, and the environment from destructive fire. The mission of NFPA is to reduce the burden of fire on the quality of life by advocating scientifically based consensus codes and standards, and research and education for fire related safety issues.

The codes referenced in the SOW are available by contacting NFPA.

OSHA, OCCUPATIONAL SAFETY & HEALTH ADMINISTRATION - regulates occupational safety and health standards which require conditions, or the adoption or use of one or more practices, means, methods, operations, or processes, reasonably necessary or appropriate to provide safe or healthful employment and places of employment.

OFFENDER - This is a federal inmate, prisoner, or offender. The terms offender and inmate are used interchangeably throughout this document.

OFFEROR - The individual, partnership, corporation, or other legal entity who submits a proposal in response to the BOP's needs outlined in a solicitation.

PROGRAM STATEMENT (P.S.) - A BOP written directive that establishes policy procedures in a given area (available on BOP website).

PRELIMINARY SITE INSPECTION - One BOP scheduled on-site inspection of the offeror's facility and location (place of performance) for evaluating the proposed site.

PREOCCUPANCY INSPECTION - One BOP scheduled on-site inspection of the contractor's place of performance to ensure facility repairs and/or renovations have been completed and minimum programmatic requirements have been met so performance may begin.

PRE-TRIAL DEFENDANT - Ordinarily means a person awaiting trial, being tried, or awaiting a verdict, as well as a person awaiting sentence after having pleaded or been found guilty when the BOP has not received notification of conviction.

PRE-TRIAL SERVICES OFFICER (PSO) - An officer of the federal court responsible for supervising federal defendants before trial or sentencing, as directed by the federal court. PSOs are more common in large metropolitan areas. U.S. Probation Officers (USPOs) function in the capacity of a PSO in most judicial districts. The terms USPO and PSO may be used interchangeably throughout this document regarding pre-trial service defendant responsibilities.

PRISON LITIGATION REFORM ACT (PLRA) - For the purpose of this SOW, the RRM will identify PLRA cases for the contractor with specific instructions. Specific requirements are outlined in the chapters on Programs and Discipline.

REASONABLE COSTS - The costs of travel (e.g., airfare, rental car, etc.) and per diem allowances for United States Government travel, as set forth in the federal Travel Regulations.

RESIDENTIAL REENTRY MANAGER (RRM) - The BOP employee responsible for all functions, programs, and services related to residential reentry programs within a specified geographical area.

RESIDENTIAL REENTRY MANAGEMENT BRANCH ASSISTANT SECTOR ADMINISTRATOR - The BOP employee who supervises the RRM.

RESIDENTIAL REENTRY MANAGEMENT BRANCH SECTOR ADMINISTRATOR - The Sector Administrator is responsible for residential reentry operations and programs within a specified geographical area (sector).

RESIDENTIAL REENTRY MANAGEMENT BRANCH ADMINISTRATOR - The BOP employee responsible for all residential reentry functions, services, and operations nationwide.

RESIDENTIAL REENTRY MANAGEMENT BRANCH SAFETY SPECIALIST - This is a BOP staff member responsible for contract compliance with county, city, state, federal, and national safety regulations.

ROUTINE MONITORING - The BOP's scheduled and unscheduled, on-site inspections to the Contractor's facility to evaluate performance.

Facilities with an average daily population of federal offenders of 15 or fewer, will have at least one full monitoring and at least two unannounced interim monitoring visits every 18 months.

Facilities with 16 to 30 federal offenders will have at least one full monitoring and at least two unannounced interim monitoring visits every 12 months.

Facilities with 31 or more federal offenders will have at least one full and three unannounced interim monitoring visits every twelve months.

SMARTPHONE - A mobile phone with an advanced mobile operating system which combines features of a personal computer operating system with other features useful for mobile or handheld use. The Bureau of Prisons requires that smartphones can access the Internet and can run a variety of third-party software components ("apps").

TYPES OF OFFENDERS - The BOP places several types of offenders in a DRC. There are many variables which determine the type and how an offender is placed and programmed in a DRC. To avoid

confusion, the contractor should consider two broad categories, BOP and USPO cases. It is important to understand which case the offender is assigned because of the differences in programming. The RRM will provide direction in this regard.

Confinement of all cases referred by the BOP is reimbursable by the BOP. The RRM can answer questions regarding reimbursable offenders.

A. Condition of Supervision Placement - Offenders under conditions of probation or supervision by the Court, or parole or mandatory release supervision by the U.S. Parole Commission may be ordered to reside in a DRC for a period of time. These placements are USPO cases and may not be reimbursable under this contract (for questions regarding reimbursement contact the RRM).

B. Institution Transfers - A BOP case who has transferred from a federal institution and is completing the last portion of their sentence.

UNIVERSAL PRECAUTIONS - As defined by Centers for Disease Control and Prevention (CDC), Department of Health and Human Services, are a set of precautions designed to prevent transmission of human immunodeficiency virus (HIV), hepatitis B virus (HBV), and other blood borne pathogens when providing first aid or health care. Under universal precautions, blood and certain body fluids of all patients are considered potentially infectious for HIV, HBV and other blood borne pathogens.

U.S. PROBATION OFFICER (USPO) - An officer of the United States District Court, who is responsible for supervising USPO federal offenders.

VIOLENT CRIME CONTROL AND LAW ENFORCEMENT ACT (VCCLEA) - For the purpose of this SOW, the RRM will identify VCCLEA cases to the contractor with specific instructions.

INTRODUCTION

The Bureau of Prisons (BOP) provides community-based residential and nonresidential correctional services through contractual agreements with state, county, and city governments, as well as private contractors. These contractors provide services which include employment and residence development and other self-improvement opportunities to assist federal offenders during the transition from prison to the community.

1. OBJECTIVE - The objective is to establish a Day Reporting Center (DRC) that provides comprehensive community-based services for offenders who are in the custody of the BOP.

2. STATEMENT OF WORK (SOW) - The SOW sets forth the contract performance requirements for the management and operation of a DRC for federal offenders. The contractor will ensure the DRC operates in a manner consistent with the mission of the BOP. The BOP's mission is to protect society by confining offenders in the controlled environments of prisons and community-based facilities that are safe, humane, cost efficient, appropriately secure, and provide work and other self-improvement opportunities to assist offenders in becoming law-abiding citizens.

3. PLACEMENT OF OFFENDERS - Only the Residential Reentry Manager (RRM) or their designee can approve a federal offender's placement at a DRC under the terms of this contract.

4. CONTRACTOR'S RESPONSIBILITY - The contractor will furnish all personnel, management, equipment, supplies, and services necessary for performance of all aspects of the contract. Unless explicitly stated otherwise, the contractor is responsible for all costs associated with and incurred as part of providing the services outlined in this contract.

5. BOP VALUES - The BOP can successfully carry out its mission because its operations are firmly grounded in a set of common values and functional goals. A clear vision of the BOP's organizational and individualized responsibilities exists among its employees. The BOP has a set of values and shared attitudes that guide staff's actions. The agency's values are important for contract employees to understand because they are the foundation of duties to be fulfilled in performance of the contract's functions. The core values are:

- Correctional Excellence - We are correctional workers first, committed to the highest level of performance.
- Respect - We embrace diversity and recognize the value and dignity of staff, offenders, and the general public.
- Integrity - We demonstrate uncompromising ethical conduct in all our actions.
- Courage - We forge new paths, challenging the status quo, and make difficult decisions to rise above adversity.

The DRC has an obligation to provide offenders with an opportunity to acquire the necessary skills for self-improvement, and to practice law-abiding behavior upon release. Offenders are encouraged to maintain family and community ties through correspondence, visitation and while planning for eventual release, through participation in pre-release classes, and other programs. Offenders have the obligation to honor their debts and begin payment while confined. Each offender is personally responsible for taking advantage of available DRC programs.

6. CONTRACT PERFORMANCE - All services and programs will comply with the SOW; the U.S. Constitution; all applicable federal, state, and local laws and regulations; applicable Presidential Executive Orders (E.O.); all applicable case law; and court orders. Should a conflict exist between any of the aforementioned standards, the most stringent will apply. When a conflict exists, and a conclusion cannot be made as to which standard is more stringent, the BOP will determine the appropriate standard. The BOP reserves the right to issue interim guidance that supersedes policy and/or aforementioned standards. The contractor will comply with and implement any applicable changes to BOP policy, Department of Justice (DOJ) regulation, Congressional mandate, federal law, or Presidential Executive Orders.

The BOP reserves the right to enter into negotiations with the contractor to change the conditions or procedures in this SOW and contract. Should the BOP invoke such changes, the contractor retains rights and remedies to equitable adjustment under the terms and conditions of the contract.

The BOP reserves the right to have various staff, to include staff from United States Probation and Pretrial Services, Office of the Inspector General, Federal and State Law Enforcement agencies, and other authorized users, assist in the monitoring of contract performance. The BOP reserves the right to conduct announced and unannounced inspections of any part of the facility at any time and by any method to assess contract compliance.

The BOP may investigate any incident pertaining to the performance of this contract. The contractor will comply and cooperate with the BOP on all investigations, monitoring visits, inspections, and inquiries.

The contractor will report all criminal activity related to the performance of this contract to the appropriate law enforcement investigative agency (e.g., Federal Bureau of Investigation, United States Marshals Service, state, and local authorities), and immediately notify the RRM of the report. The contractor will immediately report to the RRM any person or agency requesting to use an offender in any investigation; no offender may participate in any such investigation without prior approval of the BOP.

The contractor will submit any requests for contract changes through the RRM to the Contracting Officer (CO) for approval.

The contractor will provide electronic media to include email and internet access for all key staff (defined in Chapter 2 Personnel) and will provide capability for the electronic submission and receipt of paperwork and reports (e.g., referrals, movement notifications, terminal reports, disciplinary reports, etc.) to the BOP at the discretion of the RRM. Only BOP approved internet transmission methods/secure portals may be used to transmit protected offender information.

All non-restricted BOP Policies and Program Statements are available on the Bureau's public website (www.bop.gov).

7. SCOPE OF WORK - The contractor will comply with all requirements in this SOW and other reference documents as indicated. The technical proposal and any negotiated modification(s) are incorporated into the contract unless otherwise stated in the contract or defined by the Contracting Officer.

The contractor will develop operational policies and procedures that follow the requirements contained in this SOW and of generally accepted correctional practice as defined by the BOP.

The contractor will provide an electronic or scanned version of their policies and procedures to the RRM and Administrative Contracting Officer within 60 days after award. Subsequent updates shall be submitted to the RRM within 30 days of publication.

All federal offenders will receive the same programming and services except as otherwise provided for in this SOW.

The contractor has the responsibility to ensure proper management and oversight of the program. Absentee ownership will not mitigate program integrity, responsiveness, or responsibility.

The contractor will protect, defend, indemnify, save, and hold harmless the United States Government and the BOP and its employees or agents from and against any and all claims, demands, expenses, causes of action, judgments and liability arising out of, or in connection with, any negligent acts or omissions of the contractor, its agents, subcontractors, employees, assignees, or anyone for whom the contractor may be responsible. The contractor will also be liable for any and all costs, expenses, and attorney's fees incurred as a result of any such claim, demand, cause of action, judgment, or liability, including those costs, expenses and attorney's fees incurred by the United States Government and the BOP and its employees or agents. The contractor's liability will not be limited by any provision or limits of insurance set forth in the resulting contract.

The contractor will be responsible for all litigation, including the cost of litigation, brought against it, its employees, or its agents for alleged acts or omissions. The CO will be notified in writing of all litigation pertaining to this contract and provided copies of said litigation or any pleadings filed within five working days of the filing. The contractor will cooperate with the government legal staff and/or the United States Attorney regarding any requests pertaining to federal or contractor litigation.

In awarding the contract, the government does not assume any liability to third parties, nor will the government reimburse the contractor for its liabilities to third parties, with respect to loss due to death, bodily injury, or damage to property resulting in any way from the performance of the contract or any subcontract under this contract.

CHAPTER 1 – ADMINISTRATION AND ORGANIZATION

The contractor will maintain a current operations manual, either hardcopy or electronic, that is available to all staff. It will describe the purpose, philosophy, programs, services, policies, and procedures of the facility, and be updated on an as-needed basis. It will describe the daily operational procedures for the respective facility. Staff will have a thorough working knowledge of the operations manual. The contractor must operate in accordance with the operations manual. The operations manual will not circumvent the Statement of Work (SOW) requirements. The operations manual is a separate manual from the technical proposal. At least annually, staff shall review the operations manual and document the review. The operations manual will be available for review by the Federal Bureau of Prisons (BOP) during inspections of the facility.

The contractor will report to the Contracting Officer (CO) through the Residential Reentry Manager (RRM) any deviation from the requirements of this SOW. The RRM will interpret the requirements of this SOW.

Any disagreement regarding contract performance should first be disputed or addressed with the Contracting Officer's Representative (COR). If the conflict cannot be resolved with the COR, the issue should be elevated to the Residential Reentry Management Sector Administrator. If an agreement still cannot be reached, then the contractor should address the CO in writing.

The contractor will develop a mission statement, long-range goals, and objectives which will be available via electronic or hardcopy review by the BOP during inspection of the facility.

1. PERFORMANCE

The contractor will develop and maintain a current contingency plan to ensure continuity of service should unforeseen circumstances occur, such as employee work actions or strikes, natural disasters, terrorist activities, etc. As a correctional organization, it is the contractor's responsibility to ensure 24/7 continuity of service during unforeseen circumstances. The plan shall be submitted to the COR for approval prior to performance and must contain, at a minimum, the following:

- A detailed evacuation plan
- A detailed plan to continue providing service including accountability, case management, urinalysis, and other programming as required
- Provisions for maintaining adequate staffing levels

The contractor will provide at least 70 percent of the contract requirements by using employees compensated directly by the contractor. Thus, the contractor cannot subcontract more than 30 percent of the contract requirements. The intent is to create a uniform composition of services under the control and supervision of the Facility Director. The contractor will submit all proposed subcontracts to the BOP for approval when the contractor intends to seek the services of a subcontractor (e.g., food service or facility maintenance).

2. INFORMATION

The contractor will comply with the requirements of the Freedom of Information Act 5 U.S.C. §552, Privacy Act, 5 U.S.C. §552a and 28 CFR part 16, Production or Disclosure of Material or Information and P.S. 1351, Release of Information. The contractor will have written policy and procedures for staff managing information. The contractor will seek the RRM's approval before releasing BOP records in response to a request for information.

A. Government Contacts - The contractor will post and display in a conspicuous location a listing of the names, addresses, and telephone numbers of the responsible Sector Administrator, Assistant Sector Administrator (SA, ASA), Supervisory Community Treatment Coordinator (SCTC), RRM, Assistant Administrator Residential Reentry Management Branch, and Chief USPO.

B. Congress - The contractor will immediately notify the RRM when any request (e.g., information or tour of the facility) is made by any representative of the United States Congress to the contractor.

C. News Media - The contractor will notify the RRM when a request or contact is made by any media representative (i.e., a person whose principal employment is to gather or report news for a newspaper, magazine, blogs, web sites, podcasts, national or international news service, radio, or television news programs). These requests or contacts may include, but are not limited to, interviews, visits, or impromptu questions with staff or offenders. Contractors should reference P.S. 1480, News Media Contacts. The contractor is encouraged to clear in advance all media releases with the RRM. Any time a media request is made regarding offenders, to include releases and interviews, prior approval must be granted by the RRM.

The contractor will ensure employees agree to use appropriate disclaimers clearly stating the employees' opinions do not necessarily reflect the position of the BOP or Department of Justice (DOJ) in any public presentations they make or articles they may write that relate to any aspect of the contractor's performance in this contract.

D. Documentation - The contractor will document that all requirements of this SOW are being met. The contractor has the affirmative

responsibility to prove the requirements are being met. The contractor will maintain documentation of:

- Their standing as a legal entity, or part of a legal entity, and will maintain documentation indicating legal measures have been taken to provide continuity of service, in case of incapacitation, retirement, or death of the contractor
- Their tax-exempt status, if applicable
- Valid liability and property insurance for the facility and equipment, valid zoning documentation and use permits with documentation available for review at the facility

E. Meetings - The Facility Director, or designee, will conduct staff meetings at least monthly to foster open communication, establish policy, discuss problems, ensure compliance with SOW requirements, and accomplish program objectives. These meetings may be in person, or via video conference, on a monthly basis. The contractor will distribute new or revised policy and procedure to staff, volunteers, and offenders if appropriate. The contractor will document these meetings with written minutes to include staff attendance. This documentation will be made available to the BOP for inspection upon request.

F. Equipment - The contractor will have an operable facsimile machine, computer, and telephone capabilities. The contractor will have a computer with internet capabilities to include Microsoft Edge or compatible browser (Firefox, Google Chrome, etc.), as well as individual email addresses and capabilities for all DRC key staff to communicate with the RRM office. DRC staff cleared to work with federal offenders will have the capability to interact with existing bureau utilized referral and population management tools. All DRC staff must have an individual email address, regardless of if they will be accessing the referral and population management tools (R3M). Group or Shared email addresses are not acceptable for use in the electronic referral and population management tools in order to uniquely identify all contractor staff and maintain system information security standards and requirements. Computer equipment will be appropriately secured and will allow for the electronic retention of documents for the life of the contract.

If the contractor utilizes any electronic case management or accountability software programs, they will ensure that industry standards are met for the security of offender information to prevent the unauthorized viewing, dissemination, or use of protected personnel information in accordance with the Freedom of Information Act and Privacy Act. Any individuals having electronic access to non-public offender information will be cleared through the contract staff background clearance procedures.

Contractors will be required to utilize the bureau electronic applications (R3M or subsequent versions) to include all functions of the application. Use of this application and all subsequent versions or additions to the application is mandatory within 30 days of implementation. The RRM may request the information found in an offender file (located in Chapter 16) be uploaded into the electronic application.

G. Translation - The contractor will provide for the translation of facility rules, emergency diagrams, and other related documents into a foreign language, as required by the composition of the offender population.

3. COMMUNITY OUTREACH

The BOP believes it is extremely important and vital to develop and maintain positive community relations and partnerships. This will be accomplished through development of a Community Relations Board. The contractor must provide written policy and procedures that offer ongoing positive communication and partnerships between the facility, major employers who employ DRC offenders in the local community, appropriate social service agencies, legal services organizations, elected officials, law enforcement, and citizens. The program should maintain compliance with P.S. 1415, Community Relations Board. The program must describe the approach to educating the local community about the goals and mission of the DRC and maintaining the support of the community. The outreach program must also include specific activities that will be conducted on a quarterly basis. This includes the use of volunteers, which is encouraged, but not mandatory. Every effort should be made to ensure Community Relations Boards include, at a minimum, representatives from each area identified above. Documentation of membership and attendance, to include efforts at expanding participation, is to be maintained for the life of the contract and be available to oversight staff upon request.

4. FISCAL RESPONSIBILITIES

The contractor will operate according to an annual written budget of anticipated revenues and expenditures. The contractor will have policy and procedures for the receipt, safeguarding, disbursement, and recording of funds that comply with generally accepted accounting practices.

CHAPTER 2 - PERSONNEL

1. ORGANIZATIONAL CHART

The contractor will maintain a narrative description and diagrammed organizational chart outlining the structure of authority, responsibility, and accountability of both the facility and the company. The intent is to gain an understanding of the chain-of-command within the organization.

2. STAFF COVERAGE

The contractor will have paid, trained staff, dressed and alert, on the premises, to provide coverage for a minimum of 40 hours per week with the days and hours determined by the contractor. Changes must be submitted in writing to the COR for approval prior to implementation. There is no requirement for the DRC premises to be open during federal holidays. 24/7, 365 days a year GPS tracking and accountability requirements shall still be met to include any violations and equipment malfunctions and outages.

Staff members will be available remotely to meet offender needs during non-business hours. Additionally, DRC staff will report to the facility to enroll new arrivals to the program as needed. The DRC will have a designee available by telephone, twenty-four (24) hours per day, seven (7) days a week, to provide for the safe and secure supervision and accountability of all federal offenders.

3. POSITION REQUIREMENTS

A. DRC Director: The minimum education and experience qualifications for the position of DRC Director (or similar title) will be a four-year degree in a social or behavioral science program from an accredited college or university, two years of work experience in a related field, and a minimum of two years in a supervisory position. Work experience may be substituted for academic studies exchanging one year of work experience in a related field for one year of academic education. Total work experience needed in lieu of the combination of education and work experience is six years, with two of the years in a supervisory position.

B. Case Manager: The education and experience qualifications for the position of Case Manager (or similar title) will be a four-year degree in a social, human services, criminal justice or behavioral science program from an accredited college or university. At a minimum, one year of experience must be working in human services, corrections, or community-based services. Work experience may be substituted for academic studies exchanging one year of work experience in a related field for one year of academic education. Total work experience needed in lieu of the combination of education and work experience is five years. A ratio of one Case Manager for every 45 DRC offenders will be staffed.

4. STAFFING PATTERN

The contractor will concentrate staff when most offenders are available for program activities. The contractor will have a minimum of two staff members on the premises during all site hours. These staff members may be key personnel. There must be at least one male staff member and one female staff member on the premises during all site hours if the current population reflects both genders. The contractor will also provide key personnel in accordance with the number of participants assigned to the program (see Key Personnel).

5. KEY PERSONNEL

Key personnel include the DRC Director and Case Manager (one for every 45 offenders in the Day Reporting Program). Key staff titles may be replaced by similar or equivalent titles. The contractor must identify key staff by title, educational requirement, and major duties within their technical proposal.

All key personnel are full-time employees. Key personnel must be 100 percent devoted to the federal DRC contract. Any deviation from this requirement must be reviewed and approved by the RRM. The contractor will identify to the RRM the key personnel employed at the facility. The contractor will provide immediate information to the RRM of any changes in key staff and identify any staff in temporary acting positions including contract staff coming from other contracts. Approval must be obtained from the RRM for all staff, including temporary and key staff, prior to working with federal offenders.

The contractor will staff all key personnel positions throughout the performance of the contract. The contractor will notify the RRM in writing if any personnel vacate a position and indicate when a replacement will be selected. The notification will occur within five working days after the vacancy occurs.

A key personnel vacancy does not absolve the contractor from providing the position's services. Ordinarily key personnel will be replaced within a 30-day period. With appropriate justification this can be extended to 60 days by the RRM. Any further deviations may result in negative contracting action including, but not limited to, deficiencies or deductions.

6. STAFF/OFFENDER RATIO

The Case Manager ratio will be a minimum of one to every 45 offenders. The contractor is always responsible for the appropriate supervision of federal offenders and the orderly running of the DRC. The staff/offender ratio established in the contract contributes to the contractor's ability to safely and securely operate the DRC. The contractor will notify the RRM

of any unforeseen circumstances which may affect the safety, security, or orderly running of the DRC.

The CO is the deciding authority for any adjustments to the staff/offender ratio. The contractor will comply with any change(s) to the ratio as directed by the CO.

7. PERSONNEL RECORDS

The contractor will maintain a complete and current personnel file for each employee. All personnel files must be secured and accessible to senior management staff only (i.e., Director, Assistant Director, Human Resources Manager, Director Designee); hard copy personnel files must be stored in a locked compartment accessible to senior management staff only. The contractor will ensure the files are readily available for BOP review upon request.

The contractor will have a written personnel manual specifically for the respective facility. The personnel manual is a separate manual from the operations manual. The policies and procedures will cover, at a minimum, the following areas:

Staff coverage	Personnel records
Staff training	Recruitment
Staffs discipline	Separation from work
Staff retention	Performance evaluation
Organizational chart	Standards of Conduct
Staff orientation	Volunteers
Staff development	Resignation

A. Employee Evaluation - The contractor will develop written policies and procedures for an annual written performance review of each employee based on defined criteria. The results will be discussed with the employee, and the review will be signed by the employee and evaluator and maintained in the employee's personnel file.

B. Affirmative Employment - The contractor will have a written policy specifying that equal employment opportunities exist for all positions. Full consideration will be given to the recruitment, hiring, placement, retention, training, and advancement of women, members of minority groups, disabled veterans, and qualified individuals with disabilities who, with or without reasonable accommodation, can perform the essential functions of the job in question. The contractor will not discriminate against individuals based on race, color, religion, sex, national origin, physical or mental disability, age, retaliation, or sexual orientation. In addition, the contractor will not prevent women from working in male offender programs or men from working in female offender programs.

C. Newly Hired Employees - The contractor will have a written policy providing for a probationary term followed by permanent status for newly hired or newly promoted employees.

D. Social Security Card - The contractor will ensure each employee and any subcontractor has a social security card issued by the U.S. Social Security Administration and is a United States citizen, permanent resident, or other person lawfully admitted into the United States, meeting the DOJ residency requirements set forth in Section I of the solicitation.

E. Training - The contractor will develop an employee training program in addition to any BOP provided training.

1) Staff Training - Prior to working with federal offenders, all staff must receive training on their respective duties and responsibilities. This training should cover all required training topics as outlined in the SOW and should be a minimum of 40 hours in length. Sixteen hours of this training may be on the job training (OJT) under direct staff supervision. If an incumbent is awarded a new contract, the contractor will also provide training on required topics within 90 days of award for staff who worked on the previous contract. Additionally, within 90 days of employment, all key staff will be provided with and sign for the DRC staff orientation packet (provided by the RRM office), acknowledge receipt, and provide a copy to the RRM. The contractor will document all employee training, to include topics covered, with time and date of completion. A copy will be maintained in the employee's personnel file.

2) Annual Refresher Training - The contractor will provide staff with at least 20 hours of annual refresher training relating to the operation of the DRC. The contractor will document the training topics, date, time, and participants in each staff member's respective personnel file. The training must cover the following:

- Discipline procedures for offenders
- Demonstrate working knowledge and competency of the discipline procedures by passing the standardized test administered by the COR
- Emergency plans
- Staff integrity and ethics
- Accountability and security procedures
- Life safety, and emergency procedures
- Offender, vehicle, searches

- Signs of suicide and suicide precautions (to include review of the DRC's Suicide Prevention Plan)
- Use of force regulations and tactics
- Center Disciplinary Committee report writing
- Universal precautions, interpersonal relations, and communication skills
- Social and cultural lifestyles of the offender population
- Basic first aid and NARCAN
- Prevention, identification, and handling of sexual abuse/assault incidents
- Prison Rape Elimination Act Requirements

3) BOP Training - At least one key staff member will attend and participate in all BOP sponsored training events. BOP contractor conferences, which are normally scheduled on an 18-24-month cycle, are also required attendance and participation for at least one key staff member of the DRC contract. The contractor is responsible for all costs associated with attending this training.

F. Staff Retention - The contractor will develop a retention program designed to minimize employee turnover. If there are breakdowns in accountability or programming as a result of the contractor's failure to implement a successful retention program, adverse contracting action may be taken by the Bureau.

8. BACKGROUND INFORMATION

Contract employees must be approved by the RRM before they may work with federal offenders. The contractor will submit a typed, completed and signed *Request for Contract Staff Background Investigation* (Attachment A) for all individuals the contractor has determined are appropriate for employment and any person who will work with federal offenders. The contractor will then submit this typed and completed form to the RRM along with one full set of fingerprints with the required fingerprint card information completed. The RRM will process the fingerprint and background checks.

The contractor will only request the BOP conduct background checks on persons they have offered conditional employment. The contractor will advise this person that a criminal history check, fingerprint, criminal records, and other appropriate background checks will be processed by the BOP to verify this information. The intent is to screen applicants to

determine their acceptability to work with federal offenders. The contractor will not submit the name of any person the contractor does not employ or intend to employ.

No individual will begin working with federal offenders before clearance is obtained from the RRM. The RRM may grant conditional clearance to work with federal offenders after the criminal history check is conducted if the results of the check are appropriate. The contractor will understand that the granting of final approval will not occur until after the RRM receives a response(s) from the fingerprint or other background check(s) and the results prove to be appropriate.

Incumbent contractors who are awarded a subsequent new contract will secure a completed and signed Attachment A as well as a new fingerprint card from all staff. These documents will be submitted to the RRM Office within 60 days prior to new contract performance.

Contractors who have a contract which exceeds five years must ensure all staff receive updated clearances every five years from the date of last clearance approval.

The RRM will ordinarily approve a person to work with federal offenders in accordance with guidelines established in the current version of the Bureau's Program Statement on Contract Staff Integrity for Privately Operated Community Corrections Residential Facilities, P.S. 7570.

This action does not prevent, preclude, or bar the withdrawal or termination of any prior clearance or approval by the RRM at any time during the term of the contract.

The contractor will vouch potential employees through reference and employment checks prior to working with federal offenders. The contractor will document information regarding reference and employment checks in the employee's personnel file. The contractor will verify training, education, and experience of all staff. This includes credentials for all professional staff. The contractor will document the verification in the personnel file and make it available during inspections.

The DRC Director or designee may be required to fingerprint proposed staff as directed by the COR. The completed fingerprint cards will be mailed to the RRM for processing.

9. CONTRACTOR'S EMPLOYEE STANDARDS OF CONDUCT

The contractor will develop and use written policy, procedures, and practice, herein called Contractor's Employee Standards of Conduct, for employee conduct, ethics, and responsibility. The contractor will notify its employees of the Contractor's Employee Standards of Conduct.

A. At a minimum, the Contractor's Employee Standards of Conduct

Will require employees to conduct themselves in accordance with the following standards:

- The contractor will require its employees to conduct themselves professionally and in a manner that creates and maintains respect for the DRC, BOP, DOJ, and the U.S. Government.
- The contractor will require its employees to avoid any action that might result in, or create the appearance of, adversely affecting the confidence of the public in the integrity of the DRC, BOP, DOJ, and U.S. Government.
- The contractor will require its employees to uphold all ethical rules governing their professions, including compliance with applicable licensing authority rules.
- The contractor will prohibit its employees from using or possessing illegal drugs or narcotics. The contractor will prohibit its employees from abusing any drugs or narcotics. The contractor will prohibit its employees from using alcoholic beverages and being under the influence of alcohol while on duty, present in the facility, or immediately before reporting for duty. The contractor will indicate to contractor's employees that when a contractor's employee's blood alcohol content level is 0.02 percent or greater, he or she will be considered to be under the influence of alcohol.
- The contractor will prohibit its employees from showing partiality toward, or becoming emotionally, physically, sexually, or financially involved with offenders, former offenders, or the families of offenders or former offenders. Chaplains, psychologists, and psychiatrists may continue a previously established therapeutic relationship with a former offender in accordance with their respective codes of professional conduct and responsibility.
- The contractor will prohibit its employees from engaging in sexual behavior with an offender. The contractor will indicate to its employees that regardless of whether force is used or threatened, there can be no "consensual sex" between contractors' employees and offenders. Sexual misconduct is illegal and a violation of federal law.
- The contractor will prohibit its employees from offering or giving an offender, a former offender, any member of an offender's family, or to any person known to be associated with an offender or former offender, any article, favor, or service, which is not authorized in the performance of the contractor's employee's duties. The contractor will prohibit its employees from accepting any gift, personal service, or favor from an offender, former offender, or from anyone known to be associated with or related to an offender or

former offender. The Contractor's Employee Standards of Conduct will clearly state that this staff prohibition includes any involvement with an offender's family members or any known associates of an offender.

- The contractor will prohibit its employees from showing favoritism or giving preferential treatment to one offender, or a group of offenders, over another offender.
- The contractor will prohibit its employees from using profane, obscene, or otherwise abusive language when communicating with offenders, fellow employees, or others. The contractor will require its employees to conduct themselves in a manner that is not demeaning to offenders, fellow employees, or others.
- The contractor will prohibit its employees from having any outside contact with an offender, ex-offender, offender's family, or close associates, for a period of one year from the last day of the offender's sentence or supervision, whichever is later, except those activities that are an approved, integral part of the DRC program and a part of the employee's job description.
- The contractor will prohibit its employees from engaging in any conduct that is criminal in nature or which would discredit the DRC, BOP, DOJ, or U.S. Government. The contractor will require its employees to conduct themselves in a manner that is above reproach. The contractor will require its employees to obey the letter and spirit of the law while engaged in personal or official activities.
- The contractor will require its employees charged with, arrested for, or convicted of any felony or misdemeanor to immediately inform and provide a written report to the DRC Director. The DRC Director will immediately report the incident to the COR.
- The contractor will prohibit its employees from using brutality, physical violence, or intimidation toward offenders, or use any unauthorized or inappropriate force.
- The contractor will prohibit its employees from engaging in inappropriate supervisor/subordinate relationships, to include but not limited to, emotional, sexual, financial, or physical relationships.
- The contractor will prohibit its employees from possessing lethal weapons or weapons which may inflict personal injury, to include pepper spray or other self-defense type of chemical agents, in the facility or while on duty. The contractor will also prohibit contractor's employees from storing lethal weapons or weapons which may inflict personal injury, to include pepper spray or other self-defense type of chemical agents, in vehicles under their control

parked on or adjacent to the facility. Offenders will not possess or use any of these items at any time.

- The contractor will prohibit any of its employees who are suspected of violating the contractor's Employee Standards of Conduct from contact with federal offenders until a disposition is made by the COR.

Prior to working with federal offenders, the contractor will require all employees to sign an acknowledgment that they have received and understand the contractor's Employee Standards of Conduct. The acknowledgment will indicate that the contractor will require all employees to cooperate fully by providing all pertinent information which they may have to any investigative authority. Full cooperation includes truthfully responding to all questions and providing a signed affidavit if requested. The contractor will retain a signed copy of this acknowledgment in each of its employee's personnel files.

B. The contractor will not conduct an investigation of any misconduct allegation without the COR's approval. This includes questioning the subject of a misconduct allegation. The contractor will advise all employees that they are subject to government investigation if an allegation is made concerning any matter affecting the interests of the Government. (The procedures outlined in this paragraph do not limit the contractor's ability to notify the appropriate law enforcement agency of any suspected criminal violations. In the event of any misconduct involving criminal behavior, appropriate law enforcement agencies should be notified immediately with notification to the BOP as soon as possible after the incident).

Attorneys may not be present or involved in administrative investigations. Attorney involvement includes, but is not limited to presence during interviews, review of employee affidavits, and receipt of investigative summaries or documents from the investigative authority. If at any time an investigation uncovers evidence of criminal behavior, the investigation process will immediately stop, and appropriate law enforcement officials will be notified.

Investigative authorities include, but are not limited to, investigations conducted by the Department of Justice, (e.g., the Federal Bureau of Investigation, U.S. Marshals Service, Office of the Inspector General, Office of Professional Responsibility, BOP Office of Internal Affairs, BOP Special Investigative Agent, BOP Special Investigative Supervisor, Equal Employment Opportunity Investigator) and others (e.g., Department of Labor, Office of Personnel Management, U.S. Government Accountability Office), or any other agent or agency the COR authorizes or directs to conduct an investigation.

C. The contractor will report any allegation, violation, or attempted violation of the contractor's Employee Standards of Conduct

immediately by telephone to the COR. The contractor will subsequently report in writing to the COR, within one business day after becoming aware of the incident. The contractor will not restrict any contractor's employee or offender from reporting misconduct directly to the BOP. The contractor will not retaliate against any contractor's employee or offender who reports misconduct.

Following the investigation(s), and if allegations are sustained, the contractor will indicate in writing to the COR the contractor's proposed plan of corrective action for the COR's approval. The COR has the right to determine if the contractor's employee may continue to work with federal offenders. A summary of the investigative findings may be disclosed by the Bureau to the contractor's authorized negotiator.

Failure to report a violation of the contractor's Employee Standards of Conduct or to take appropriate action against a contractor's employee may subject the contractor to appropriate action, up to and including termination of the contract.

D. The contractor will not employ any individual who is under the supervision or jurisdiction of any parole, probation, or correctional authority. Persons with previous criminal convictions who are not under supervision may be considered for employment, however, the COR reserves the right of approval in such cases.

E. The contractor will have a written policy to prevent conflicts of interest that specifically states no employee may use his or her official position working with federal offenders to secure privileges or advantages in the facility or in the community.

F. The contractor will operate a DRC which provides the highest degree of safety for offenders and contractor's employees. The contractor will specifically define in their policies and operations manual when contractor's employees may use force against offenders. The contractor will prohibit contractor's employees from using excessive force to control a situation. The contractor will immediately report any instance of the use of force to the COR. The contractor will submit a written report to the COR in writing within one calendar day after the incident.

10. SEXUAL ABUSE PREVENTION

The contractor has the responsibility to provide a working environment that is free from sexual harassment and intimidation in accordance with Title VII of the Civil Rights Act of 1964, as amended. Sexual abuse/assault/misconduct is verbal or physical conduct of a sexual nature directed toward an offender or employee by another offender, employee, or volunteer of the facility. The contractor will ensure that policy prohibits sexual abuse/assault/misconduct by employees against federal offenders or other employees.

The contractor will meet all requirements, elements and protocols of P.S. 5324, Sexually Abusive Behavior Prevention, and Intervention Program. Written policy, procedure, and practice will provide that all staff receive the DRC's sexual abuse/assault/misconduct prevention and intervention program training during employee orientation and on an annual basis as part of the DRC's in-service training plan.

11. P.L. 108-79, Prison Rape Elimination Act of 2003 (PREA)

PREA seeks to eliminate sexual assaults and sexual misconduct of offenders in correctional facilities to include all community-based facilities. The contractor must maintain a zero-tolerance standard for sexual abuse.

12. DRUG FREE WORKPLACE

The contractor will implement and follow P.S. 3735, Drug Free Workplace. This program provides a mechanism for employee assistance and employee education regarding the dangers of drug abuse.

13. VOLUNTEERS

The BOP encourages the use of volunteers. Contractors may use volunteers to provide a variety of programs, such as marriage and family enrichment, substance abuse education, literacy, spiritual growth, recreation, health education, fitness, vocational training, and many others. While providing these valuable services, volunteers reinforce the societal values conveyed daily by staff. Direct volunteer assistance is useful to an offender's successful community reintegration.

Volunteers are private citizens or students, age 18 or older, who provide a variety of unpaid services which would not otherwise be performed by a paid employee. The contractor will have all volunteers complete the BOP form, "Application for Volunteer Service," and send the form to the RRM. The contractor will provide a brief orientation program for all volunteers and provide specific written guidance in the format of a "Volunteer Manual."

All volunteers who provide services in the DRC must undergo a criminal history check (NCIC) at a minimum prior to working with federal offenders.

14. STAFF AND VOLUNTEER ROSTERS

The contractor will submit a typed, alphabetical staff roster each month to be included with the monthly billing. This roster must include the employee's complete name, title, full or part-time status, date conditional clearance approved, date full approval, and date began working with federal offenders. Volunteers should be listed separately, indicating the type of volunteer work being done (e.g., AA, NA, religious, etc.).

CHAPTER 3 - FACILITY

The facility will comply with applicable local, state, and national health, safety and environmental laws, regulations, Executive Orders, and building codes. In the event local, state, and national codes conflict, the most stringent will apply.

1. COMPLIANCE

The contractor will adhere to the most current requirements of the following:

- the Architectural Barriers Act of 1968 as amended (an alternative location off site may be proposed for housing offenders with disabilities if it meets this act)
- Rehabilitation Act of 1973 as amended
- Occupational Safety and Health Administration (OSHA) General Industry Standards
- American Society of Heating, Refrigerating and Air Conditioning Engineers (ASHRAE) Published Standards & Guidelines
- American Society of Sanitary Engineering Standards
- Uniform Plumbing Code
- 16 CFR §1632
- Flammability Standard DOC-FF-472
- California State Technical Bulletin 106
- all National Fire Protection Association Codes and regulations with emphasis on Chapter 101
- and any other codes or regulations indicated in the SOW.

The BOP reserves the right to act as the Authority Having Jurisdiction (AHJ) with respect to the interpretation, enforcement, and waivers of these requirements.

The contractor will maintain copies of all required environmental permits and registrations or letters from permitting authorities indicating the facility is in compliance or is specifically exempt from the standard in question. The contractor will make these documents available on-site and

to the BOP upon request.

2. FLOOR PLANS

The contractor will submit to the RRM for approval any request to change the floor plan from what was approved in the contract. The contractor will maintain and make available an accurate floor plan on-site at all times for the inspection of the BOP. The architectural floor plans shall be drawn to scale by a computer-aided drafting design program, legible, and denote all required elements described below:

- Room identification indicating what the room is used for to include separate office, conference room, gender bathrooms, etc.
- Location of sinks and toilets by gender
- Means of egress elements shall be easily identified (i.e., ramps, stairs, doors, etc.).
- The proposal shall be in compliance with all of the requirements of the Architectural Barriers Act (ABA). This includes identifying required floor space clearances for accessible routes, toilets, and compliant wash basins areas on the architectural floor plans.
- If any renovations/additions are planned, provide "as built" architectural drawing(s) and proposed architectural drawings depicting renovations.

3. LOCATION

The DRC may be located in a building with other businesses with BOP approval. The DRC may be located in a building with shared common space, but the DRC facility must be exclusive to the federal program and may not be of joint use. The Bureau reserves the right to have the final decision in determining potential conflicts of interest. The BOP strictly prohibits the use or possession of alcohol in the contract facility. The contractor will ensure the building is appropriately zoned. The contractor will maintain a permit from the local or state enforcement body or authorized representative having jurisdiction to operate. The contractor will make these documents available on-site and to the BOP upon request.

4. PLANT REQUIREMENTS

All contracts providing services to the Federal Government must meet the Architectural Barriers Act of 1968 (ABA), which requires that certain buildings owned, occupied, leased, or financed by the Federal Government be designed, constructed, or renovated so as to be accessible to and

useable by people with physical disabilities. The Uniform Federal Accessibility Standards (UFAS) are the technical guidelines used to comply with the ABA. The BOP reserves the right to act as the Authority Having Jurisdiction (AHJ) with respect to the interpretation, enforcement, and waivers of these requirements.

The Rehabilitation Act of 1973 prohibits federal agencies and their grantees and contractors from discriminating against people based on disability in employment, programs, and activities. There are two applicable sections under this act, Sections 502 and 504. Section 502 established the Architectural and Transportation Barriers Compliance Board (ATBCB) to ensure enforcement of the ABA, and accessibility standards for federally owned, occupied, or leased buildings or facilities. Section 504 prohibits discrimination against qualified individuals with disabilities in federally funded programs and activities. The Department of Justice's Civil Rights Division is responsible for ensuring compliance with this section.

A. Air Circulation - The facility will have adequate ventilation of outside or re-circulated filtered air complying with ASHRAE Standard 62, ACA and Environmental Conditions. Prior to the preoccupancy inspection, the contractor will provide documentation from an independent certified third-party inspector, certifying adequate natural or mechanical ventilation is present. The contractor will provide the BOP with a newly certified independent third-party inspection with each new contract. Third party measurements will indicate total CFMs in each room. Fresh air and filtration requirements shall also be ensured. Inspections must be completed no more than nine months prior to the Pre-Occupancy Safety Inspection.

B. Lighting - All personal areas in the facility will meet the lighting requirements as set forth in the most current and subsequent issues of the ACA Standards for Adult Community Residential Services. This will also be documented as part of the independent inspection of the electrical system by a certified contractor (see Chapter 6 - Electrical Safety). A copy of the certified contractor performing the electric system inspection will be attached to the report.

C. Space - The contractor will provide appropriate space and furnishings inside the facility that afford a reasonable amount of privacy, as well as adequate staff supervision for counseling sessions, and group meetings. The area shall not be obstructed by any objects and allows enough space to freely move. A specified bathroom area to conduct urinalysis will be identified.

D. Lavatory - A DRC will have a minimum of one operable toilet and one wash basin. Wash basins will have hot and cold water. Hot water temperature will be thermostatically controlled so the water does not exceed 120 degrees Fahrenheit (49 degrees Celsius). Temperature control devices will be inaccessible to offenders and unauthorized personnel.

E. Room Temperature - The contractor will maintain the DRC temperature at a level appropriate for the season in accordance with 41 CFR 101-20.107 Federal Property Management Regulations and ASHRAE Standard 61 (American Society of Heating and Air Conditioning Engineers).

F. General - The performance site will not operate as a hotel or motel.

G. Smoking - The interior of the DRC will be non-smoking, and signs will be conspicuously posted indicating this requirement. The contractor may designate smoking areas outside the DRC 10 to 25 feet away from all entrances and exits and must be in compliance with all local restrictions or ordinances.

H. Drinking Fountains - The contractor will ensure all drinking or water bottle replenish fountains are maintained in accordance with the ADA and the Clean Water Act.

I. Computer Access - The contractor will provide access to computer/internet technology, to include printers and scanners, to assist offenders with education, employment, reconnecting with family members and communities, and other reentry preparation via electronic mail. Access will be provided at no cost to the offender while at the facility. Access to these resources should be sufficient to pursue education and employment opportunities and to correspond with potential educators or employers without limitation or hindrance, unless by court order. Contractor will provide an appropriate number of internet-enabled computers, but no less than two, for offenders when on-site for educational and vocational purposes. The number of computers required is determined by the estimated maximum number of home confinement placements. Contractors are responsible for ensuring the printers provided allow for adequate offender access based on the number of computers. The contractor will have written policy and procedures for the offenders' use of telehealth within the DRC. The contractor will provide equipment to facilitate telehealth access to include telephone and computers with camera/internet access to allow for offenders' use of telehealth within the DRC. Equipment shall be located within a secure and private location to ensure all offenders can have a confidential conversation with medical, mental health and substance use treatment providers.

CHAPTER 4 - LIFE SAFETY

Any structure used to facilitate federal offenders must meet specific fire and safety standards before it can be approved by the BOP. In applying these standards, the safety and welfare of both staff and offenders must be considered. The contractor will maintain an acceptable level of fire and life safety by complying with the most current fire safety codes, standards, and regulations set forth by the National Fire Protection Association (NFPA), BOP policies, and other local, state, and federal entities. The BOP will be considered the Authority Having Jurisdiction (AHJ).

1. REQUIRED THIRD-PARTY INSPECTIONS

Prior to the pre-occupancy inspection, but dated no later than 9 months prior to the pre-occupancy inspection, the contractor will provide documentation from a Fire Marshal inspection, Building inspection, Sprinkler inspection, Annual Fire Extinguisher inspection, and Annual Fire Panel inspection (if applicable), certifying the Day Reporting Center (DRC) area of the facility, to include any emergency egress locations associated with the DRC, is in compliance with the most current version of the NFPA codes and standards. At a minimum, the inspection report should address the following:

- Fire load(s)
- Emergency egress(es)
- Fire protection- e.g., fire extinguishers, smoke and carbon monoxide detectors, etc.
- Fire inspections, e.g., monthly, quarterly, annually, etc.

The contractor will also comply with the most current version of the following California State Technical Information Bulletins, published by the California Bureau of Home Furnishings and Thermal Insulation (BHFTI): Bulletins: 106, 116, 117, 121 and 133. It is recommended the facility will be protected throughout by an approved automatic sprinkler system in accordance with NFPA standards, BOP policy, and other applicable codes and standards. The BOP reserves the right to act as the (AHJ) with respect to the interpretation, enforcement, and waivers of these requirements.

2. INSPECTIONS

The contractor will maintain current building inspections conducted annually by the local or state authority having jurisdiction per the NFPA, OSHA, and BOP policy requirements. Inspection reports will be retained and made available to the BOP to indicate the inspections were completed in a timely and appropriate manner. Annual inspections include but are not

limited to: fire suppression system, fire extinguishers, (kitchen) hood suppression system, etc. This does not include required weekly, monthly, or any other required time-sensitive inspection(s).

The BOP reserves the right to conduct inspections to verify compliance with all annual certifications and local/federal codes.

3. FIRE EVACUATION AND EMERGENCY PLANS

The contractor will maintain current written emergency plans. The contractor will train all staff in emergency procedures within one week of their initial employment. In addition, the contractor will include emergency training in annual refresher training for all staff. The contractor will document all training in the staff member's personnel file.

The plans will describe the procedures to follow in emergency situations and be updated on an as-needed basis. The contractor will submit a current copy of the emergency plans to the RRM after the contract is awarded and before the notice to proceed is given by the Central Office. The contractor will forward any subsequent changes or updates to the emergency plans to the RRM. The intent is that both the RRM and the contractor will have a set of current procedures to use if an emergency occurs.

The contractor will ensure all emergency contact telephone numbers and addresses are up-to-date and valid. The plans will identify potential emergency situations such as a fire or major emergency (including man-made and natural disasters) and outline appropriate action which ensures resident accountability and safety. At a minimum, the plans will include instructions for the following:

- Types of emergencies- fire, man-made, natural disaster, etc.
- Notification to the appropriate authorities by dialing 911
- Activation of pull station(s), announcement(s), etc.
- Evacuation routes and procedures
- Predetermined assembly location(s), to include primary and secondary
- Head count and any appropriate searches - unaccounted for person(s)
- Notification procedures to the appropriate RRM office or duty officer
- Emergency procedures to shutoff valves associated with water, gas, and electrical services

- Procedures for utility interruptions
- Off-site evacuation location in the event the facility is uninhabitable
- Incipient fire procedure(s)

A. Diagrammed Evacuation Routes and Drills - The contractor will post diagrammed evacuation routes at a conspicuous location on every floor or level of the facility. The contractor will not use the site and floor plan for this requirement. The evacuation diagram will be by a computer-aided drafting design program and contain no handwritten or hand-drawn labels/markings.

A diagrammed emergency evacuation route will identify "You Are Here" location and be compatible with the floor plan. This diagram will also show the exterior areas around the DRC and indicate outside areas of the DRC (for example, but not limited to street names and/ or neighboring buildings) used as assembly points or other areas of safe refuge during an emergency evacuation or drill.

The diagram will include the location of building exits, fire extinguishers, pull-stations, first aid supplies, meeting area(s) (outside), and area(s) of safe refuge (interior). Floor evacuation diagrams shall reflect floor arrangement and be properly oriented.

The contractor will review all emergency and evacuation procedures, including diagrammed evacuation routes, with each new offender upon arrival. Emergency procedures should be documented during the initial orientation process.

The contractor will conduct an evacuation drill when offenders are physically at the DRC. At a minimum, the contractor will conduct one fire drill every three months. The contractor will document each drill which will include how the evacuation alarms were activated, date and time of the drill, amount of time taken to evacuate the building, evacuation path used, number of staff and offenders participating, and comments.

B. Fire Alarm Systems - All buildings occupied by federal residents must be equipped with an automatic fire detection and alarm system designed, installed, tested, and maintained in accordance with the NFPA. The system design must incorporate, at a minimum, battery-operated smoke detectors that are placed, inspected, and maintained per NFPA standards. If gas operated appliances are in use in the facility, the system design must incorporate, at a minimum, battery-operated carbon dioxide detectors that are placed, inspected, and maintained per NFPA standards.

Facility staff as designated by the Facility Director will be trained and knowledgeable in the operation of the fire alarm system. A trained staff member will be on duty during hours of operation.

C. Fire Extinguishers - Buildings used for federal offenders must be equipped with an adequate number of portable fire extinguishers that are sized, located, installed, tested, and maintained in accordance with NFPA. At least one extinguisher must be provided on each level of the building.

4. FURNISHINGS

Combustible and flammable fuel load sources will be kept to a minimum to prevent the possible spread of fire. The contractor's furnishings will meet the standard test requirements in the California State Technical Information Bulletins.

Interior furnishings such as window covers, curtains, sofas, chairs, etc., will meet the requirement of all NFPA standards and BOP policy. These are to be considered minimum requirements. These furnishings will be maintained, and replaced, per the manufacturer's recommendations.

The contractor will maintain documentation of compliance with current NFPA standards, BOP policies, and other local, state, and federal entities.

NOTE: When the contractor is utilizing a portion of a structure where multiple businesses are adjoined, the areas for programming of federal offenders must be protected by a two-hour fire wall which meets the approval of the authority having jurisdiction.

5. EMERGENCY LIGHTING

Where required, NFPA approved emergency lighting will be installed in the event normal electrical lighting is disrupted. Normally, emergency lighting will be located at exit points and midway down hallways to assist occupants in exiting the DRC in an emergency situation. These emergency lights shall be tested on a monthly basis for a minimum of thirty seconds (logged, visual test, not exceeding 30 days between tests) and on an annual basis for an hour and a half with a final reading of at least 0.06-foot candles (logged, functional test). The contractor must maintain a log documenting the testing of emergency lights. Emergency light testing will also be part of the independent inspection of the electrical system by a certified contractor (see Chapter 6- Electrical Safety).

CHAPTER 5 - SANITATION & ENVIRONMENT

1. SANITATION

A well-defined sanitation and housekeeping plan is of utmost importance for the protection of health and well-being. In addition, proper sanitation throughout the facility complements fire and pest control efforts. Failure to maintain an aggressive program results in preventable accidents, injuries, and personal liability. The BOP reserves the right to act as the Authority Having Jurisdiction (AHJ) with respect to the interpretation, enforcement, and waivers of these requirements.

The contractor will maintain a written sanitation and housekeeping plan which provides for the upkeep of the facility. The plan will be made available to the BOP upon inspection.

The plan will address the following standards and activities:

- The facility and surrounding area will be kept clean and in good repair at all times.
- Sidewalks leading from the exits will always be clear of materials, debris, ice, and snow.
- The contractor will document weekly sanitation and safety inspections of all internal and external areas and equipment. Documentation will indicate corrective action to be taken on discrepancies found during these inspections. The action will be completed in a timely manner and will be documented and made available for BOP inspection upon request.
- Waste containers will be of noncombustible or flame- resistant material capable of extinguishing smoke and flame.
- Filters on furnaces and ventilation systems will be exchanged and kept clean per manufacturer's requirements. The contractor will not allow the ventilation system ducts and vents to accumulate excessive dust and dirt build-up.
- Increased sanitation measures in times of flu outbreaks and/or pandemics, in accordance with the pandemic plan.

Offenders are not permitted to perform work for the contractor. Offenders are not permitted to perform any sanitation or housekeeping work in the facility.

2. ENVIRONMENT

The contractor will establish an appropriate recycling program to include, at a minimum, aluminum cans and newspapers, or to meet applicable local recycling requirements.

CHAPTER 6 - ELECTRICAL SAFETY

The contractor will comply with all local, state, and national electric codes including the National Electric Code (NEC), OSHA standards, and BOP policy. In the event local, state, and national codes conflict, the most stringent will apply. The BOP reserves the right to act as the Authority Having Jurisdiction (AHJ) with respect to the interpretation, enforcement, and waivers of these requirements.

Prior to the preoccupancy inspection, the contractor will provide documentation of an independent inspection of the electrical system by a certified contractor. Inspections must be completed no more than nine months prior to the Pre-Occupancy Safety Inspection. Inspection documentation results will be a detailed report certifying the following at a minimum:

- all GFCIs are in good working order
- receptacles are not loose in the wall or worn and unable to properly hold electrical cords/devices
- wiring of receptacles/branch circuits is correct; branch circuits are not overloaded
- electrical indexes are correctly labeled
- interior panel board terminations have been torqued to manufacture recommendations and preventive maintenance has been conducted
- exterior and interior grounding systems/conductors are installed and maintained according to the NEC
- transformers have had preventive maintenance conducted
- emergency lighting/exit signs are installed and maintained according to the NFPA and all areas in the facility meet the lighting requirements as set forth in the most current and subsequent issues of the ACA Standards for Adult Community Residential Services.

A copy of the certified contractor performing the electrical system inspection will be attached to the report. The contractor will provide the BOP with a newly certified independent third-party inspection with each new contract.

1. GROUND FAULT CIRCUIT INTERRUPTER (GFCI) - The contractor will use GFCIs on all 110-volt single phase outlets in the bathroom areas within 180 centimeters (5.9 feet) of a water source. GFCI outlets are also required in areas setup as kitchen-type countertops. This includes, but is

not limited to, tables being used to house mini-refrigerators, microwaves, coffee makers, and water coolers. GFCI wiring will be 14-gauge with ground. Standard wiring is usually 12-gauge with ground.

2. PANEL BOX - Interior electrical panel box covers will contain an accurate directory. The directory will reference the disconnecting means of electrical equipment, such as the breaker switch, and indicate the area which it controls. The directory will be legible and easily recognizable. The outside of the electrical panel box must contain either a numeric or alpha indicator near the top of the panel to identify the different boxes in a room. Office materials and equipment cannot be stored in an electrical room.

3. EXTENSION CORDS - The contractor will not use extension cords in lieu of hard or permanent wiring. Permissible, temporary extension cords must have surge protectors.

4. RECEPTACLES - Wiring and receptacles must be grounded. Two-wire outlets may not be used.

5. FLOOR SPACE HEATERS - Floor space heaters that are cool to the touch and utilize an automatic shutoff if overturned may be used.

6. FANS - Appropriate guard grids on oscillating or floor fans will be in place.

7. ELECTRIC SAFETY - The following electrical safety standards will apply:

A. Damaged or frayed wiring cannot be taped or spliced. The use of electrical tape to repair cut or damaged cords or cables is prohibited. Cords and cables must be repaired by the proper means (e.g., use of heat shrink tubing, or re-installation of cords or cables to equipment). Bare wire may not be exposed.

B. Empty light fixtures or fuse sockets may not be exposed or unprotected. Missing knockouts, circuit breakers, or other openings in electrical equipment must be enclosed to prevent exposure to live or energized ports.

C. The use of multi-outlet electrical adapter plugs is prohibited. Only surge protectors are authorized.

D. Damaged plate covers, switches, and outlets must be replaced.

An Electrical Maintenance Program (EMP) shall be established. The EMP shall establish procedures and intervals for the servicing, inspection, and testing of the requirements of Chapter 6. The EMP will be in accordance with the Manufacturer's recommendations, NEC, ANSI, BOP policy,

and other local, state, and federal entities, as applicable. Documentation of the program will be made available upon request to the BOP.

CHAPTER 7 - HAZARDOUS COMMUNICATION/CHEMICAL CONTROL

The contractor will establish and use a written plan for the storage, issuance, handling, and accountability of all chemicals, including hazardous, toxic, caustic, and flammable materials, and personal protective equipment (PPE) in the facility. Hygiene items are exempt from the Hazardous Communication program. Aerosol spray cans are not considered to be pressurized containers. The BOP reserves the right to act as the Authority Having Jurisdiction (AHJ) with respect to the interpretation, enforcement, and waivers of these requirements.

The contractor will also address universal precautions in regard to blood and body fluids. All body fluids are to be considered potentially infectious. The contractor will maintain a body fluid clean-up kit in the facility.

The Environmental Protection Agency (EPA) and OSHA establish standards for the proper handling and use of toxic, caustic, and flammable materials. While offenders are not used to clean or for maintenance at the DRC, they shall be informed of the SDS sheets if they come into contact with any chemicals at the DRC. All offenders assigned to the DRC will receive training during intake screening.

Activities which are implemented, in whole or in part, with federal funds must comply with applicable legislation and regulations established to protect the human or physical environment and to ensure public opportunities for review. The contractor will remain in compliance with federal statutes during the performance of the contract, including but not limited to the Clean Air Act, Clean Water Act, Endangered Species Act, and the Resource Conservation and Recovery Act, as well as other applicable laws, regulations, and requirements.

The contractor will be responsible for and will indemnify and hold the Government harmless for any and all spills, releases, emission, and discharges of any toxic or hazardous substance, any pollutant, or any waste, whether sudden or gradual, caused by or arising under the performance of the contract or any substance, material, equipment, or facility utilized. Therefore, for the purposes of any environmental statute or regulation, the contractor will be considered the "operator" for any facility utilized in the performance of the contract and will indemnify and hold the Government harmless for the failure to adhere to any applicable law or regulation established to protect the human or physical environment. The contractor will be responsible in the same manner as above regardless of whether activities leading to or causing a spill, release, emission, or discharge is performed by the contractor, its agent or designee, an offender, visitor, or any third party.

If the contractor spills or releases any substance into the environment, the contractor will immediately report the incident to the CO through the RRM. The liability for the spill or release of such substances rests

solely with the contractor and its agent.

At no time will the contractor dispose of hazardous, toxic, or caustic substances by unsafe methods. Unsafe methods include spreading or pouring it onto the ground, dumping in a lake, river, or stream, and flushing into sewers.

1. TRAINING

The contractor will train all staff in the proper handling and use of all hazardous, toxic, caustic, and flammable materials within two weeks of their initial employment, whenever a new hazard is introduced into their work area, and annually thereafter.

The contractor will document all training. Training will include:

- Methods that may be used to detect the presence or release of hazardous materials in the facility
- The potential health hazards of chemical spills in the work area
- The measures employees can take to protect themselves from these hazards, including procedures such as universal precautions and personal protective equipment
- The details of the hazard plan developed by the contractor, including an explanation of the labeling system and the SDS, and how employees and offenders can obtain and use the appropriate information regarding hazardous materials.

2. HAZARD COMMUNICATION SAFETY DATA SHEETS (SDS)

When using an identified hazardous material, the contractor will obtain and maintain the SDS, (OSHA form 3493-02, or its equivalent) for that material. SDS forms will be maintained and readily accessible to staff and offenders. The SDS form lists information about the storage, use, and disposal of the material and those requirements will be followed. A staff member will be assigned to review chemical storage and use to include an annual review of all SDS forms to ensure accuracy and that they are current. Staff will document this review and make it available to the BOP upon inspection.

3. MANAGEMENT

Flammable materials such as, but not limited to, gasoline, kerosene, propane, and paint thinner will be stored outside of the main facility. These items will be stored in a proper storage container and/or area unless otherwise indicated by the authority having jurisdiction.

The contractor will use good judgment when making decisions regarding the use and storage of chemicals and hazardous materials. The intent is to manage chemicals and hazardous materials in accordance with governing regulations while providing a safe environment for both offenders and staff members.

All secondary containers in the DRC shall have a label with the following information:

- Product Identifier (Name of the Chemical)
- Signal words (Danger or Warning or None, depending on the Hazards of the Chemical)
- Pictograms (Nine different pictures that Display Specific Hazards)
- Hazard Statements (Physical, Health or Environment Hazards)
- Precautionary Statements (General, Prevention, Response, Storage & Disposal)
- Company Information (Manufacturer and/ or Distributor Information)

CHAPTER 8 - PEST CONTROL & WASTE MANAGEMENT

1. PEST CONTROL

The contractor will provide for vermin/pest control and disposal. Control and accountability of pesticides and rodenticides are mandatory. The BOP reserves the right to act as the Authority Having Jurisdiction (AHJ) with respect to the interpretation, enforcement, and waivers of these requirements.

The contractor will place screens, in good condition, on all open windows and doors throughout the contract facility. Screens are not required on exit doors. The contractor will ensure all windows, doors, window-style air conditioning units, cracks, and holes in and outside the building will be properly sealed to minimize the entrance of pests.

The contractor will post a notice 24 hours in advance notifying offenders of the application of pesticides. This notice will include the type of pesticide used and will remain posted 24 hours following the application of the pesticide.

If the contractor subcontracts an outside pest control company to perform pest control services for the facility, the pest control company must provide SDS forms for all pesticides to be applied at the facility. In addition, after the application, the pest control company must inform the DRC in writing regarding what pesticide was applied and the amount used.

2. TRASH REMOVAL

The contractor is responsible for all trash removal. The contractor will provide noncombustible containers in such sizes and quantities needed for sufficient trash collection. Trash will be removed at least daily from inside the facility. The contractor will ensure all garbage is removed from the facility property in such a manner to ensure sanitation and to prevent accumulation, odors, and pest control problems.

CHAPTER 9 - REFERRAL AND INTAKE PROCESSING

The contractor will have written policy and procedures governing offender referral and intake processing.

It is the philosophy and policy of the Bureau of Prisons that all offenders are afforded the opportunity for community placement including but not limited to sex offenders, violent offenders, arsonists, etc., in DRCs. Policies which may restrict the placement of offenders within community facilities are subject to the interpretation of the BOP, who is the determining agency for placement in community facilities.

The contractor will accept all offenders for placement at the DRC and manage any offender referred by the RRM. In cases where local and/or state laws or ordinances do not allow for placement of a specific type of referral, the contractor will submit written justification to the RRM who will determine if the justification is in compliance with the technical proposal. Acceptance of a federal offender under this contract not referred by the RRM may result in non-payment or other negative contract action.

1. REFERRALS

The RRM will forward a referral packet (electronically) to the contractor requesting a specific placement date. If the placement date is within the next 30 days, the contractor must respond within three working days. If the placement date is more than 30 days from the date the referral is received, the contractor must respond within seven working days. If the requested acceptance date is not granted, a written justification must be provided in R3M to the RRM.

All referrals for DRC placement require the contractor to verify the proposed home confinement location prior to acceptance of the referral. This initial home confinement location verification prior to referral acceptance may be completed via virtual review and telephonic contact. At least 60 days prior to the proposed placement and transfer date an in-person, on-site verification of the home confinement location must be completed by the contractor. If the contractor determines the home confinement location is not appropriate, immediate notification to the RRM must occur.

All forms, terms and conditions should be signed and completed prior to offender transfer from the institution to the DRC.

A current photo of the offender must be uploaded into R3M/BOP electronic referral management system. The contractor will not place an offender on day reporting until the offender has agreed to the conditions and signed the forms.

The contractor must submit the BOP form, *Conditions of Home Detention, BP-A0460.073*, Attachment J, with each day reporting request. The RRM may require additional documentation from the contractor when making a day reporting determination. Once the RRM has approved day reporting, the contractor will place the offender on day reporting, unless there are extenuating concerns. These concerns must be discussed with the RRM prior to the offender's home confinement placement date.

A. Acceptance - The contractor will provide notification of Acceptance to the RRM confirming the reporting date. If the reporting date differs from the date in the referral packet, the contractor must obtain concurrence from the RRM before notifying the referring source of the acceptance.

1) Offenders transferring from a BOP institution - The contractor will send the notification of acceptance, and DRC rules and regulations to the offender in care of the Unit Manager as indicated in the referral packet.

2) Supervision cases - The contractor will provide the offender with copies of the acceptance letter, and DRC rules and regulations upon admission to the facility.

2. ADMISSION

Immediately upon an offender's arrival, staff will conduct a private interview with the offender to determine if there are any non-medical reasons the offender cannot attend group programming sessions and must be programmed separately from the facility's offender population.

During the interview, contract staff will evaluate the general physical appearance and emotional condition of the offender and ask questions pertaining to both physical and mental health, ensuring that, at a minimum, the requirements on the *DRC Elements of the Medical Examination for Offenders Committed Directly to the DRC*, Attachment B, Part 1, are met. Offenders will be further screened for risk of victimization and abusiveness in accordance with PREA requirements. If after screening the offender is determined to be at risk of victimization or abusiveness, the RRM must be contacted to refer the offender for Community Treatment Services. It is important for the intake staff to ask the offender about medications (e.g., do they have any prescribed medication from the institution, how much, and are they in compliance with taking their medication). All information provided by the offender regarding medication will be confirmed with the medical referral document(s) and the Bureau Electronic Medical Record. If the offender is on prescribed medication, the contractor will initiate a process to ensure the offender receives his/her medication prior to the expiration of the current supply. The DRC will maintain records of each participant's prescribed medications to include the prescriber's name, medication name, dosage, frequency, prescription expiration and refills remaining, in the case file.

In addition, during the interview, staff will inform the offender about the DRC rules and regulations to include the contact person(s) regarding incidents of sexual abuse/assault, discipline. PREA intake forms must be completed.

3. NOTIFICATION

The contractor will electronically transmit through R3M (other BOP approved means) a daily admission/transfer/release form each business day to the RRM indicating all arrivals/transfers/releases for the day. If the reporting offender is a supervision case, the contractor will, in addition, notify the appropriate USPO. The form must include full name, register number, and the time/date of arrival/transfer/release. All releases will also include the complete release address.

Accountability is paramount. Should an offender not arrive at the designated time, the contractor will immediately notify the sending institution and RRM that the offender failed to report to the DRC. The contractor will notify no later than 60 minutes from the estimated arrival time of the offender.

There may be instances of late arrivals where there are circumstances beyond an offender's control. In these cases, the contractor must verify the reason and notify the sending institution and RRM the offender has arrived and the reason they did not arrive by the designated time. This late arrival notification must occur within thirty minutes of the offender's arrival time. Any offender committed to the BOP who fails to report to a contract facility for admission will be placed on escape status. The BOP will determine an offender's escape status.

Offenders reporting to a DRC as a condition of supervision are ordinarily not in the custody of the BOP. These offenders who leave without authorization have absconded from supervision rather than escaped from custody. The DRC must immediately notify the USPO. Determination of escape or abscond status rests with the BOP.

The contractor will process the following required documents and return them to the RRM within one calendar day of an offender's arrival. The contractor will maintain copies of all these documents in the offender's file.

A. Transfer Orders - For institution transfers, the contractor will sign and return the *Transfer Order (Return of Service)* to the RRM within one business day of the offender's arrival. This will be uploaded into the R3M.

B. Judgment/Commitment Order - The contractor will execute the Order immediately upon arrival of offenders placed in BOP custody as a condition of probation. Staff must execute the certified Orders and return

one to the RRM and one to the U.S. Marshal (USM) of the sentencing district.

C. Fingerprints - At a minimum, key contractor staff will be trained in fingerprinting procedures. For institution transfers (BOP cases), the contractor will execute the *Authorized Unescorted Commitment & Transfers Identification Card* by fingerprinting the offender's thumb in the designated area immediately upon arrival. The contractor will forward the executed card to the RRM within one business day of the offender's arrival. It is critical staff compare the new thumb- print with the thumbprint on the card to verify the identity of the offender. Identification is also determined by comparing the offender with the photo on the card and questioning the offender about their name, date of birth, offense, and register number.

The contractor will obtain one set of fingerprints on direct court commitments. Fingerprints will be obtained immediately upon arrival and uploaded into R3M.

D. Initial Intake Form - The contractor will complete the *Initial Intake Form*, (Attachment C) for each offender and place it in the offender's file.

E. Photograph - The contractor will digitally photograph each offender when they are admitted to the DRC and upload in R3M, so it is available to the RRM. The offender will be re- photographed if there is a significant change in the offender's appearance during the DRC placement. This procedure will provide for a recent, clear means of identification, which is useful in subsequent matters of investigation, discipline, or escape.

F. Identification - Upon intake the contractor will ascertain from the offender if they possess a valid birth certificate and/or state issued identification card and will maintain related data. If the offender does not possess a state issued identification card, the contractor will assist and facilitate the offender in the process of obtaining a state issued identification.

G. Screening - All cases accepted into the DRC will receive a medical/mental health screening immediately upon arrival which will contain at a minimum all the requirements in Attachment B (Part 1). Special emphasis should be given to chronic health conditions such as diabetes, hypertension, and infectious diseases such as TB, HIV, hepatitis, etc., as well as any mental health or medical assisted treatment (MAT) concerns. The screening is to determine any urgent medical or mental health care needs, restrictions from work, and freedom from infectious disease.

The contractor will notify the RRM (and CTS as applicable) of those offenders with immediate medical or mental health needs, and/or infectious

diseases. The results will be documented, placed in the offender's file, and uploaded into R3M. However, if an offender is suspected of having an infectious or debilitating health problem during the DRC initial screening, to include suspected withdrawal from substances, the contractor will arrange for an immediate examination within one calendar day after arrival.

H. Medical Examination - All cases committed directly to the DRC from a non-BOP facility or from the community will receive a medical examination, in accordance with Attachment B (Part 2), within five working days after arrival. This examination is to identify any medical or mental health conditions which may require medical attention.

The complete health examination will include relevant diagnostic procedures as indicated in Attachment B (Part A & B). All offenders should be tested for TB (PPD test/read and, if positive, a chest x-ray), and any other infectious/communicable diseases if clinically indicated.

I. DNA Analysis Procedures - The DNA Analysis Backlog Elimination Act (DNA Act) requires the BOP to obtain DNA samples from all offenders with qualifying offenses in order to comply with the DNA Analysis Backlog Elimination Act of 2000 (P.L. 106-546) and USA Patriot Act (P.L. 107-56). These laws require DNA samples to be obtained from offenders convicted of all federal codes. Samples must also be obtained from qualifying D.C. Code felony offenders.

1) DNA Collection - Each contract facility, including DRCs, will be responsible for arranging the collection of DNA samples from offenders whom the RRM has identified as requiring testing. These offenders include DRC offenders and any direct court commitments. Only offenders who are serving terms of imprisonment with the BOP need to be evaluated for DNA sample collection.

2) Steps for DNA Sample Collection

- a) The servicing RRM office will provide each contractor with a *Request for DNA Collection Letter*, Attachment D, requesting the collection of DNA samples on any offender identified as requiring DNA testing.
- b) The RRM office will forward Attachment D, requesting the collection of the DNA sample, the swab kit, and a *DNA Fact Sheet*, Attachment E, to the contractor.
- c) Upon receipt of Attachment D, the contractor will contact BOP staff to obtain the offender's DNA number for inclusion on the Request for National DNA Database Entry cards.

- d) Upon receiving the assigned offender DNA number, contract staff has 24 hours to obtain the DNA sample from the offender. (NOTE: Strict accountability of DNA numbers must be maintained to ensure that proper/assigned numbers are provided with the correct offender DNA sample.)
- e) Instructions for the use of the Buccal Swab Kit are included with each kit. Additional training to include pamphlets and an instructional video are available on the DNA sample kit manufacturer's website.
- f) Once a DNA number is placed on a kit and the collection is completed, the kit will be sent directly to the FBI by the contractor within 24 hours of collection.

3) Refusals to Submit a DNA Sample - In the event an offender refuses to submit DNA to the contractor taking the sample, the offender should be counseled regarding the obligation to provide a sample. Should the offender continue to refuse, the contractor will contact the RRM. Offenders who refuse DNA testing may be designated to an appropriate BOP facility in order to obtain the DNA sample.

CHAPTER 10 - PROGRAMS

The contractor will make use of and rely upon information provided by the BOP regarding the risks and individual needs of each offender.

1. OFFENDER CASE MANAGEMENT

A. Individualized Program Plan (IPP)

Within four calendar days of the offender's arrival at the DRC, Case Managers will complete the IPP, using Attachment F or subsequent versions. *(NOTE: Bureau of Prisons may elect to develop and implement the Individualized Program Plan as part of R3M. Upon implementation it is required that the contractor utilize the individualized program plan within R3M).* The IPP is the "roadmap" for the offender's case management while at the DRC. The IPP will address all of the offender's needs and risks identified in the information provided by the BOP and through any risk/needs assessment completed by the contractor. Often times, the offender has needs greater than employment (e.g., further educational, and vocational training, mental health treatment, etc.).

The contractor will clearly identify in the IPP how they will prioritize and assist the offender in addressing elements of the IPP, to include specific program activities and a timetable for achievement of these goals. The contractor must provide programming opportunities to address all identified offender needs and goals. These programming opportunities may include treatment through Community Treatment Services contracts, DRC programming, and community programming resources that may be accessible by offenders in their release area.

B. Progress Reviews (PR)

Within 7 days of the IPP completion, the contractor will begin conducting Progress Reviews (PR) with the offender every 7 days until the offender is employed or has a waiver of employment. Offender needs and lack of progress may require progress reviews with the offender more frequently. Once employed, offenders progressing and programming well may earn less frequent progress reviews of every 21 to 30 days; this change in PR frequency must be determined through a decision made in PRT, documented in the PRT notes, and documented in the progress review. Offenders should meet with a case manager no less than every 30 days or once per month.

The PRs must have substance and indicate the offender's progress or lack of in each area of identified need. Offender failure to engage or participate in identified programming for needs must be documented and the goal is for offenders to be completing targeted programming in each area every review period. The progress notes will be documented in Attachment F. The PRs must be dated and signed by the staff member that

authored the report and by the offender. The dated and signed PR must be uploaded into R3M in PDF format no later than three calendar days from the date of the PR. The PRs must be used as the basis for the terminal report.

C. Program Review Team (PRT)

The contractor will implement a multi-disciplinary team approach to determining offender program needs and will monitor participation to encourage pro-social behaviors.

The PRT will consist of one or more representatives of each of the following:

- Facility Director or caseworker
- treatment provider if the offender is a CTS participant
- BOP RRM staff
- USPO

The contractor will provide all participants with a schedule of the PRT meetings, preferably two weeks in advance. BOP staff will participate when their schedules permit. If the USPO, CTS treatment provider, or BOP staff is not able to participate in the PRT, the contractor will solicit their input regarding the offender's programming needs and goal completion.

It is the expectation the PRT will review the Individualized Program Plan and subsequent progress reviews as part of a comprehensive discussion of the offender's progress to date.

At a minimum, the PRT will meet on a monthly basis. All offenders will be reviewed by PRT within the first 30 days of arrival at the DRC. Subsequent PRT meetings with offenders should be conducted based on offender needs and progress, or lack thereof, in identified programming and documented in PRs. Offenders must be reviewed by PRT no less than 30 days from their BOP release date.

Documentation of PRT meetings for an offender will be included in the offender PRs and will be uploaded into R3M.

D. Program Planning and Progress

It is the responsibility of the Case Manager to develop and coordinate

reentry programs to ensure continuity of care for the offender and to facilitate services for offenders with special needs (e.g., sex offenders, significant medical and mental health issues, substance use, medication assisted treatment (MAT), and specialized female offender programming, etc.). This coordination will include consultation with the SCTC for treatment that is provided under CTS contracts. The SCTC determines which offenders will participate in substance use, medication assisted treatment (MAT), mental health, and sex offender treatment. The reentry programs to provide services for offenders with special needs exclude the treatment provided by CTS providers.

1) Release of Information - In cases where an offender is participating in medical or mental health treatment outside of the facility, the contractor will ensure they obtain a release of information from the offender and consult with the care provider for information to be included in the IPP.

2) Family Participation - The contractor will make every effort to include the offender's family members/significant others in the reentry program planning process. The purpose is to cultivate a network of support for the offender's return home. Therefore, family is defined broadly and may include extended family members, partners, close friends, or mentors.

3) USPO Participation - The contractor will consult with the USPO when developing reentry plans for USPO cases. The reentry plan will be signed by the contractor and offender, and when applicable, the supervising authority. If the offender refuses, staff witnessing the refusal will place a signed statement to this effect with the plan.

2. INDIVIDUAL ORIENTATION

The contractor will have written policy and procedures regarding offender orientation, case management, and transitional programming. At orientation, the contractor will refer the offender to available reentry programs and services as indicated by the individualized program plan and ensure offender is aware of community resources and partnerships.

The contractor will provide all programs, services, and opportunities without discrimination based on race, color, religion, sex, national origin, physical or mental disability, age, retaliation, or sexual orientation.

The Facility Director will ensure each offender receives an orientation about the facility rules and accountability requirements. The contractor will establish an orientation checklist and staff will have the offender sign and date this document as they complete each requirement and place the original in the offender's file. Whenever

possible, the contractor will invite and permit family members to attend the orientation provided the offender consents.

The offender's family members/significant others living at the home confinement location should ordinarily attend an orientation meeting at the DRC, to describe the purpose, accountability, and expectations of the offender. However, if the family/significant others cannot attend the initial orientation meeting at the DRC upon offender arrival, the family/significant other orientation can take place during the site visit conducted by contractor staff. Any change in release address shall be reviewed with the PRT to ascertain if there are any known reasons to preclude the requested location.

Orientation will normally last until the offender is aware of the following (should not exceed three working days from date of arrival):

- Accountability
- Facility Handbook
- Facility's program opportunities
- Components and what they mean
- Facility's disciplinary system
- Universal precautions
- Sexual abuse/assault intervention
- Human immunodeficiency virus (HIV) and Hepatitis B & C prevention (e.g., risks regarding sexual behavior and drug abuse)
- Suicide prevention
- Requirements for urine surveillance and testing
- Decision making and consequences of decisions
- Personal accountability
- Resource person(s) in the facility
- Consequences of escapes
- Sign-in/sign-out procedures
- Pass and job search procedures

- Appropriate behavior in the community and the DRC

DRC staff must exercise flexibility and utilize community resources to ensure all offenders have access to religious services. Each request for religious activities will be handled on a case-by-case basis and the RRM will be contacted for guidance when there could be potential management concerns.

3. EMPLOYMENT

The contractor will develop and provide an employment assistance program. Emphasis should be placed on assisting the offender in finding viable employment that will potentially offer long-term employment based upon their skills and capabilities.

The Case Manager is responsible for providing offenders with employment assistance in accordance with, but not limited to, the following:

- IPP
- Job placement resources both in the DRC and in the community, to include the Department of Labor's One-Stop System, consistent with current labor market trends.
- Employment information assistance using computer-based technology and resources which include career assistance software and on-line resources (e.g., Internet, America's Career Info Net). The Case Manager will have direct access to the Internet to meet this requirement.
- Portfolio development, resume writing, proper dress, and interview techniques training.
- Individual and group counseling, case management, and post-release follow-up relative to employment within the community, to include the area where the offender plans to live following release.
- Employment job fairs either on-site or in partnership with other organizations, such as community colleges.

Self-employment or employment by an offender's family member must be approved in writing by the RRM.

A. Bi-weekly Status Report

If full-time employment, or active progress towards meeting other

identified needs and goals, is not obtained within 30 days of arrival to the facility, the contractor will forward to the RRM a biweekly status report of the efforts to assist the offender and maintain a copy in the offender's file. The Case Manager will develop a plan to involve the offender in productive activities such as volunteer work or community service, to minimize the amount of idle time. The plan and IPP progress notes regarding the offender's efforts and progress will be placed in their case file.

B. Employment Approval and Verification

1) Legal status notification - Each offender's employment requires the contractor's written approval. The contractor will ensure through documentation that the offender's employer is aware of the offender's legal status prior to beginning employment. This notification can be conducted via U.S. Mail, fax, email, or telephone. However, the contractor must obtain written verification from the employer of the notification. If employer notification is via telephone, this telephonic notification must be documented separately, and written documentation must be obtained from the employer within seven calendar days. At no time should the offender be allowed to hand deliver the notification to the potential employer. Any changes in an offender's employment will require advance approval by the contractor.

2) On-site visit - For each job an offender acquires, the contractor will verify employment by an on-site visit during the first seven calendar days of employment and document the visit to include date and the title of the person contacted. The contractor will request the employer notify the contractor if the offender does not report to work as scheduled, is terminated, or quits. A telephone number and contact person at the DRC will be provided to the employer to report such incidents. Virtual work site inspections may be conducted in lieu of on-site inspections with the prior approval of the RRM.

3) Monthly check - Thereafter, at least monthly, the offender's employment supervisor will be contacted by phone or site visits to substantiate attendance and discuss any concerns which may have arisen. The contractor will make additional contacts as necessary. All contacts concerning an offender's employment will be documented in the IPP progress notes, including review of pay checks/stubs to ensure accountability.

All offenders (BOP and USPO cases) are subject to these requirements. The contractor will report any deviation to the RRM. Any modifications of these requirements for USPO cases may be approved by the Facility Director with USPO concurrence. Documentation will be maintained in the offender's file.

Restriction from work will not be used as a disciplinary sanction.

Informal resolution will not impede or control an offender's ability to work.

4. OFFENDER'S FINANCIAL RESPONSIBILITY

The Bureau expects each sentenced offender to meet his or her legitimate financial obligations. To provide for the continuity of the Bureau's policy concerning the Offender Financial Responsibility Program, the contractor will establish a program which includes the following:

- All offenders, with staff assistance, will develop a budget and financial plan to address all financial obligations.
- Offender budgets must be reviewed, updated and documented at every progress review.
- Offender budgets will be reviewed and discussed during IPPs and PRT.
- Each financial plan will be monitored effectively to ensure satisfactory progress is being made.
- Appropriate consequences will be incurred by offenders who refuse to participate in the program or fail to comply with their financial plan.
- The financial plan will include the following obligations, ordinarily in the order listed:
 - 1) Special Assessments
 - 2) Court-ordered restitution
 - 3) Fines and court costs
 - 4) State or local court obligations
 - 5) Other federal government obligations

The contractor will develop a working relationship or point of contact (the courts and United States Attorneys' offices) to assist offenders in making court-ordered payments and will record the offender's progress toward meeting those obligations. The contractor will provide pertinent addresses to offenders concerning payment of court-ordered financial obligations.

Subsistence will not be collected from any offender on home

confinement.

The contractor is prohibited from collecting offender money or providing any banking function for the purpose of a security deposit. The contractor will not act as a bank or depository for offenders (i.e., cashing checks, payday lender, savings account, loans, etc.).

5. OFFENDER DRIVING

The BOP encourages the approval of driving privileges for those offenders who are responsible and appropriate. The Facility Director is the approving authority for driving privileges for BOP offenders. The USPO is the approving authority for USPO offenders to drive unless otherwise specified by the USPO.

The contractor will document all relevant information on the BOP form *Authorization to Operate a Motor Vehicle* in the offender's file and upload in R3M.

The offender must provide the following prior to approval:

- proof of valid insurance (at least liability or the minimum state requirement)
- a current, valid driver's license
- current, valid vehicle licensing and registration
- a current, official driving record from the state of residence to the contractor

The offender is responsible to ensure the registration, driver's license, and insurance are valid throughout their stay at the facility. The contractor will maintain copies of these documents in the offender's file, with the exception of the driver's license. Current and valid documents must be uploaded into R3M.

The contractor will include the driver's license number, expiration date, and a description of the vehicle in the offender's file. If the vehicle to be used is the property of a person other than the offender, the contractor must have documented proof of valid insurance, vehicle licensing and registration, and a signed authorization (either notarized or witnessed by DRC staff) to use the vehicle obtained from the legal owner.

6. COMMUNITY TREATMENT SERVICES (CTS)

The SCTC will determine which offenders will participate in medication assisted treatment (MAT), substance use, mental health, and sex

offender treatment. MAT, substance use, mental health, and sex offender treatment will be provided by CTS contract treatment providers identified by the SCTC. The SCTC provides clinical oversight of the offender's treatment and of the contract treatment providers.

A. Offender participation in CTS - The DRC will be notified of an offender's participation in CTS by the SCTC via a CTS Authorization document which will contain the CTS approved contract treatment provider's name, address, and telephone number. The DRC is not authorized to send or to permit an offender to seek substance use, MAT, mental health, and sex offender treatment from any provider not pre-approved by CTS. DRC staff may contact CTS if an offender is identified as in need of community treatment services.

DRC staff have an obligation to ensure the offender attends scheduled appointments with the CTS treatment provider. The DRC will work with the contract treatment provider to ensure offenders are attending all subsequent appointments and that incident reports are issued for missed appointments.

B. Communication - Communication between DRC staff and the treatment provider ensure that continuous offender accountability and public safety are maintained. Regular contact between the DRC staff, treatment staff, and other involved staff is essential. This may be accomplished through on-site visits between DRC and treatment providers, telephone contact, e-mail, or participation on the PRT or the DRC's Community Relations Board.

DRC staff observes the offender's daily behavior and reinforces the importance of the relationship between the offender's compliance with DRC regulations and treatment. Contact between the DRC staff, treatment staff, and other involved staff must be documented in each offender's individual program plan.

7. SPECIAL SUPERVISION CONDITIONS

Courts or the Parole Commission may require offenders to become involved in specific programs upon release from the DRC or in some instances, while confined at the DRC (e.g., mental health aftercare, alcohol treatment, community service obligation). The contractor will confer with the USPO and RRM on policy and procedures for implementation of all special supervision conditions.

8. MARRIAGE

The contractor will refer a BOP offender's request for marriage to the RRM, with the contractor's recommendations. Marriage requests for offenders under supervision will be forwarded to the USPO.

CHAPTER 11 – SECURITY & ACCOUNTABILITY

The contractor will have a comprehensive offender accountability program that ensures every offender is accounted for while in the community. The contractor will provide written policy and procedures on offender accountability and security.

The contractor will have a security plan that provides a safe and secure environment for both staff and offenders. The contractor's program will:

- control the introduction of contraband
- ensure the facility's safety, security, and good order
- prevent offender escapes
- maintain sanitary standards
- eliminate fire and safety hazards

The expected results are that continuous offender accountability and safety are maintained through a system of reasonable and accurate controls.

1. OFFENDER ACCOUNTABILITY

The contractor shall utilize a Global Positioning System (GPS) to ensure accountability of all offenders on home confinement at all times. The contractor shall maintain adequate additional GPS equipment on site at all times to allow for emergency placements and malfunctioning equipment to be replaced without delay. The contractor must demonstrate proficient use and effectiveness of the GPS equipment and monitoring system to account for offenders 24/7.

The contractor must develop and maintain a policy that details a system of procedures and escalation to address, at a minimum, the following GPS issues:

- GPS "drift"
- Loss of location identification
- GPS signal loss
- Zone alerts
- Zone violations

- Tamper alerts
- Low battery/charge

The contractor's policy and procedures will clearly specify staff actions and expected time frames for responses to any GPS issues identified above. Additionally, the contractor's policy and procedures will detail the expected accuracy in distance of the utilized GPS equipment.

Compliance with the conditions of day reporting shall be monitored by all of the following:

- Telephone
- in-person contact
- Global Positioning System (GPS)

Accountability procedures must include the use of inclusion and exclusion zones for each offender. Additionally, accountability procedures must provide for active, live monitoring of GPS alerts and include a GPS review for each offender with documentation once every 8 hours at a minimum.

The contractor will offer different types of GPS tracking equipment to be used as needed for offender accountability and levels. This may include ankle tether, smartphone with Bluetooth tether, smartphone, smartwatch, or any available GPS enabled tracking technology proposed by the contractor and approved by the BOP prior to use in the DRC contract.

2. OFFENDER ACCOUNTABILITY LEVELS

The contractor will ensure offenders are assessed and placed on an appropriate level of accountability measures as defined below:

Level 3

- Home Confinement
- two types of GPS tracking equipment
- direct HC of low-risk recidivism level starting point
- HC cases with concerns for accountability

Level 2

- Home Confinement

- one type of GPS tracking equipment
- accountability calls initiated by both DRC staff and the offender
- direct HC of minimum recidivism risk level starting point

Level 1

- Home Confinement
- one type of GPS tracking equipment
- no routine accountability calls requirement unless questions/concerns
- DRC reviews GPS movement daily and documents

The contractor will review and document at each offender progress review the current accountability level with a goal of offender placement on Level 1. Offender progress, or lack of, toward Level 1 placement must be documented in each progress review.

3. ALTERNATE MEANS OF OFFENDER ACCOUNTABILITY

If the electronic means of monitoring an offender described above is infeasible for technical, medical, or religious reasons, the RRM may allow for an alternative means of monitoring a prisoner placed in home confinement that the RRM determines is more appropriate than GPS. This will be detailed and submitted in writing by the contractor to the RRM for written approval.

4. ON-SITE ACCOUNTABILITY

As all offender accountability is monitored by GPS, DRC staff will visit the offender's home and place of employment at least once every 30 days. For homes or places of employment over 100 miles from the facility, virtual inspections may be conducted in lieu of on-site inspections with prior RRM approval. The RRM may authorize extending the in-person visits of home/employment by the contractor to once every 90 days.

Procedures for accountability must be in accordance with the offender's identified needs in the IPP. In conducting site visits, the contractor will take care not to unnecessarily interfere with the offender's ability to maintain gainful employment and positive family relationships. The contractor must notify the RRM of the operational procedures for the use of the GPS. The frequency offenders on GPS report to the DRC will be determined by the needs of each offender and their individualized program plan.

5. OFFENDER CELL PHONES

Contractors must develop procedures and policies that allow for the possession and routine use of cell phones, to include smartphones by offenders. Such policies and procedures must take into account offenders' important needs to interact with potential employers, educators, family, friends, and other members of the community. Contractors will develop a cell phone agreement to be signed by all offenders, which outlines cell phone use. The policy will be reviewed during the pre-occupancy inspection. The RRM must approve all cell phone and smartphone contractor policies prior to implementation.

Contractors must allow for offenders to retain and utilize their cell phone devices at all times, absent court order to the contrary. In instances where cell phone use is determined to be disruptive (e.g., during group counseling, etc.), the contractor may include provisions for phones to be placed on silent/vibration mode.

6. MONITORING ACCOUNTABILITY

The contractor will be able to locate and verify the whereabouts of offenders at all times. Written procedures will be established to guide staff in meeting this requirement. Accountability monitoring should occur at a frequency that ensures accountability and should be commensurate with the accountability needs of each individual offender as identified in the IPP. The RRM may modify the frequency and type of an offender's accountability contacts if it is in the best interest of offender accountability and program objectives.

The contractor will ensure all staff are proficient in the use of the approved GPS. The contractor must provide remote access to RRM staff for any GPS system used.

The contractor will authorize an offender (based on accountability level) to leave the home confinement location for approved program activities, including reporting to the DRC and employment. Documentation of an offender's movement must include:

- offender's full name and register number
- type of offender
- method of transportation
- work contact information
- pass site contact information

- time out
- destination
- purpose
- authorized return time
- time-in
- section for special comments, and certification by staff's initial for each entry

The intent is to provide a chronological record of the offender's movement.

The contractor will identify and document all individuals (e.g., offenders, visitors, contractors, volunteers) entering or exiting the DRC by using a sign-in/sign-out system. The contractor will maintain, monitor, and control access to this system. Documentation must include:

- individual's name
- organization (if applicable)
- purpose
- time in/out of the facility

In the event of an emergency evacuation, the contractor will continue offender accountability as outlined in the contractor's emergency plans.

7. OFFENDER MOVEMENT

Movement in the community is an integral part of the facility's accountability program and offender programming. The offender's absence from the home confinement location is to achieve specific programming objectives to include seeking employment and strengthening family ties, as well as to engage in religious, education, recreation or counseling activities and reintegrating with society. The contractor approves these program activities commensurate with the offender's programming needs and the public interest.

During community movement, the contractor is responsible for accountability of the offender. The contractor will have written procedures for accountability of offenders to include community movement for job searches, work, religious services, programming activities, medical, furloughs and as determined by the IPP.

Ordinarily, the offender must remain at their approved residence from 9:00 p.m. to 6 a.m., unless approved for a pass/movement. From 6:00 a.m. to 9:00 pm, offenders on Level 2 and 3 are required to have passes/movement approved in advance. Offenders on Level 1 are not required to have passes/movement approved in advance. All offenders must notify the DRC upon departure from and return to the residence. Contractors shall have policies in place to communicate and address offender needs for emergency medical care, including offender requirements to notify upon/after arrival at the urgent care clinic or emergency room. Progressive discipline may be utilized to address repeated issues of non-compliance.

The contractor is encouraged to utilize community resources to ensure indigent offenders are assisted with community needs to include transportation.

A. Furlough - The contractor will comply with the most recent version of the P.S. 5280, Furloughs. The contractor's recommendation with written justification will be sent to the RRM for approval along with the BOP form *Furlough Application - Approval and Record* and appropriate questionnaires. The offender must sign the form. Only the RRM may approve a furlough. The per diem rate for offenders of furlough will be equivalent to the home confinement rate.

The contractor will maintain a record of furloughs including the date and time of departure, the date and time of return, random accountability checks, and notes regarding the offender's adjustment during the furlough period.

Furloughs for emergency medical procedures will be initiated when an offender is admitted to the local hospital. The furlough application will be completed and forwarded to the RRM by the next business day following the offender's hospital admission.

8. DRUG AND ALCOHOL SURVEILLANCE PROGRAM

The contractor must establish a surveillance program to deter and detect the use of illegal drugs and alcohol. All offenders on day reporting are required to be tested for drug and alcohol use upon initial arrival to the DRC and a minimum of once every 90 days. Drug and alcohol testing frequency may be increased based on the intake assessment, suspected substance use, RRM request, and/or changes and concerns documented in the offender's IPPs. Offenders with a condition of drug aftercare, known to have a history of drug abuse, requirement to participate in CTS substance use services, or who are suspected of illegal drug use will be tested no less than four times a month.

The contractor must have procedures in place allowing for the breathalyzing and testing of offenders at random intervals. The contractor may subcontract with UA testing sites near offender home and work sites.

A. UA Testing - All urine testing will be conducted on an unscheduled basis in accordance with *Urinalysis Procedures*, Attachment I. The following UA procedures must occur:

- Staff of the same gender as the offender being tested will directly supervise the giving of the urine sample.
- To eliminate the possibility of a diluted or adulterated sample, staff will keep the offender under direct visual observation until a complete sample is furnished.
- Staff will visually witness the collection of urine into the specimen container.
- As soon as the sample has been collected, staff will secure the specimen.

If the offender is unable to provide the sample, at the time of the request, staff will continue direct supervision for a two-hour period. To assist the offender in giving the sample, staff will offer the offender sufficient water (minimum of 8 oz.) during the two-hour time period to aid in urination.

If an offender is unwilling or unable to provide a urine sample within two hours of a request, staff will file an incident report. No waiting period or extra time will be allowed for an offender who directly and specifically refuses to provide a urine sample.

No unauthorized persons or offenders may be involved in the handling of supplies or the collecting, recording, mailing, or processing of test results under any circumstances.

Upon approval of the RRM, the contractor may exercise the option of employing alternative methods of testing (e.g., test cup, or strip test.) Regardless of the testing protocol used, a follow-up sample must be collected using the standard urine analysis test if the initial test sample results in a positive finding. Alternative testing measures will not be used as the sole evidence in issuing an incident report for positive use.

B. UA Laboratory - The contractor will use a laboratory which meets the requirements of 42 CFR Part 493, Laboratory Requirements, to engage in urine drug testing for federal offenders. The contractor will maintain certification documents and evidence the lab meets all specifications in Attachment I for inspection by the BOP. The urinalysis lab will detect and identify drugs and/or metabolites by basic screen at the minimal levels shown in Attachment I.

A positive written report from the lab for any of the drugs listed in

Attachment I indicates that the particular drug has been identified by an initial screening test and then confirmed by a laboratory procedure. Retesting at the offender's request is not permitted. For an incident report charging use of a particular drug to be justified, the minimum waiting period between successive positive samples as outlined in Attachment I must be observed. In addition, waiting periods also apply to offenders who initially arrive at the facility.

When a positive finding cannot be explained, DRC staff will thoroughly investigate the positive urine test result to validate the positive finding. The contractor will report all unauthorized positive test results to the RRM on the day received.

C. Urine Sampling Program Log - The contractor will maintain a log entitled Urine Sampling Program documenting all offender urine testing and maintain the log in the facility at all times. The log will indicate:

- offender tested
- staff performing the test
- date, time, and type of test administered
- test result
- a column to indicate if the offender refused to cooperate

D. Alcohol Testing - The contractor will maintain a surveillance program in order to deter and detect use of alcohol. All offenders will be tested each time there is face to face, in person contact with DRC staff. The contractor will maintain an alcohol testing log documenting:

- offender tested
- staff performing the test
- date, time, and type of test administered
- test result; and
- a column to indicate if the offender refused to cooperate

E. Evidential Breath Measurement Device (EBMD) - An Evidential Breath Measurement Device (EBMD) shall be used for alcohol testing. The EBMD must be identified on the most current version of the National Highway Traffic Safety Administration (NHTSA) Conforming Products List, which is published in the Federal Register. The EBMD shall be maintained, calibrated, and re-calibrated in accordance with the NHTSA and

manufacturer's maintenance and re-calibration standards. All information and documentation pertaining to the EBMD, its use, and maintenance shall be accessible to monitoring staff upon request. An adequate number (minimum of two) of devices will be kept and calibrated at least monthly in accordance with manufacturer standards or recommendations. These checks will be documented in the EBMD test log.

The contractor will ensure staff using the instrument is familiar with its operation as outlined in the manufacturer's operating instructions.

If an alcohol test results in a Blood Alcohol Content of .02 or higher, a second confirmation test must be completed 15 minutes later. If confirmation is received of Blood Alcohol Content of .02 or higher, an incident report will be prepared charging the offender with using intoxicants. Offenders who refuse to submit to an alcohol test, either through word or action, will receive an incident report.

9. SEARCHES AND CONTRABAND

The contractor will have written policy and procedures for searches to control contraband and its disposition. The policy will identify items which are considered contraband at the DRC. This policy will be made available to all staff and offenders. The contractor shall train staff on the proper techniques for offender pat, vehicle, and common area searches. This training shall be conducted within the first week the employee is hired, and annually thereafter.

A. Pat searches - Staff shall conduct pat searches of all offenders prior to entry of the DRC to limit contraband introduction into the DRC. The facility shall not conduct cross-gender searches.

B. Visual Searches - DRC staff are not authorized to conduct such searches.

C. Offender Property/Belongings - The contractor shall conduct searches of all offender property and belongings prior to entering the DRC facility. This search shall be documented in a separate log and made available to the BOP upon request.

D. Facility Searches - The contractor shall conduct searches of the facility as needed, but at least once per month. These facility searches shall be documented in a separate log and detail every interior and exterior area searched. Contraband identified must be documented during each search with the location found. The log will be made available to the BOP upon request.

E. Offender Vehicle Searches - The contractor shall conduct searches of any motor vehicle operated by an offender, as needed, but at least once per month. These searches shall be documented in a log made available to the BOP upon request.

10. NARCOTIC IDENTIFICATION KIT (NIK)

If any unknown substance resembling narcotics is found, the contractor shall use a Narcotic Identification Kit to determine the identity. The contractor shall maintain a supply of Narcotic Identification Kits to determine the identity of the unknown substances. Staff shall be trained and proficient in using the Narcotic Identification Kit and shall ordinarily be responsible for testing unknown substances. The contractor shall maintain these commercially available kits at the facility to meet this requirement.

11. REPORT OF INCIDENT

The contractor will report all unusual or serious incidents immediately to the RRM (or designee) by telephone. Serious incidents include, but are not limited to, the following:

- Escapes
- PREA allegations
- "Standards of Conduct" violations
- spill of hazardous materials
- disturbances
- gang activities
- work-place violence
- civil disturbances or protests
- staff use of force
- assaults on staff or offenders
- fights
- fires
- suicide threats or attempts
- deaths

- hunger strikes
- natural disasters
- adverse weather (e.g., hurricanes, floods, significant ice or snowstorms, heat waves, tornadoes)
- injuries
- any law enforcement visits
- bomb threats
- significant environmental problems that impact facility operations
- transportation accidents
- offender victim contacts
- adverse incidents that may result in significant publicity
- any arrest and/or detainment of offenders by law enforcement authorities.

Immediately following RRM (or designee) notification via telephone, the contractor will submit written notification of a significant incident report (SIR) via e-mail detailing the incident which includes, but is not limited to, the following:

- Type of incident, date, and time
- Person(s) involved (if offender, include register number)
- Notifications (who, date and time)
- Any media attention
- Brief summary of incident

Additionally, the contractor will immediately notify the RRM (or designee) when an offender shows evidence of suicidal ideation, or unusual or dangerous behavior. If the contractor is in doubt, they will contact the RRM (or designee).

CHAPTER 12 - DISCIPLINE

To ensure offenders live in a safe and orderly environment, it is necessary for the contractor to impose discipline on those offenders whose behavior is not in compliance with the rules.

The contractor will provide written policy and procedures for offender discipline. The contractor will establish facility rules of conduct and sanctions, and disciplinary procedures when the offender violates the rules of conduct, to include informal resolution. The contractor will submit to the BOP all minor rules and sanctions, which the contractor has created, for approval.

All staff members, excluding staff representatives, who participate in the Center Discipline Committee (CDC) must demonstrate working knowledge and competency of the discipline procedures by receiving training passing the standardized test administered by the COR on an annual basis. At least two staff at the contracted facility location must meet this requirement. All staff responsible for offender discipline will comply with P.S. 5270, Inmate Discipline Program. (Note: In BOP policy, the term Unit Discipline Team (UDC) is used. The UDC is synonymous with the term CDC.)

The BOP prohibited acts in the current program statement must be utilized with exceptions as listed below. The contractor may add other approved minor rules necessary to ensure the safe and secure operation of the facility. If additional minor rules are added by the contractor, the contractor will associate available sanction(s) to impose for the violation of each added rule. When determining a sanction, the contractor will ensure the sanction is commensurate and appropriate to the violation.

The rules of conduct and sanctions will be defined in writing and communicated to all offenders and staff. The contractor will carry out disciplinary procedures within appropriate time limits, and with respect for the offenders. Disciplinary action may not be capricious or retaliatory.

There is a wide range of sanctions a contractor may impose or recommend for violations of facility rules of conduct. When violations are minor in nature, an informal resolution (e.g., reprimand, loss of television or other privileges) may resolve the issue. The contractor is encouraged to resolve all incidents at the lowest level and utilize progressive discipline when appropriate. Although informal resolutions are encouraged, they will not be used for repeat offenses or where progressive discipline has failed.

1. GENERAL DISCIPLINARY PROCEDURES

The contractor will take disciplinary action at such times, and to the degree necessary, to regulate an offender's behavior within BOP's prohibited acts and rules of conduct. The contractor will control offender

behavior in a completely impartial and consistent manner. The contractor may not impose or allow imposition of corporal punishment of any kind.

The contractor will use the following BOP discipline forms:

- *Center Discipline Committee (CDC) Report* is used by the CDC to summarize the action taken by the CDC.
- *Duties of Staff Representatives* is used to outline the responsibilities of an employee who is available to assist the offender at their request by speaking to witnesses and by presenting favorable evidence to the CDC on the merits of the charge(s) or in extenuation or mitigation of the charge(s).
- *Incident Report* is used to document the offender's misconduct (summary of the offense committed and prohibited act code). The document must be legible.
- *Inmate Rights at Center Discipline Committee Hearing* is used to notify the offender of their rights before the CDC and allows the offender to waive the 24-hour notice prior to appearing before the CDC.
- *Notice of Center Discipline Committee Hearing* is used to notify the offender of date and time of the CDC.
- *Waiver of Appearance* is used to notify the offender of their right to appear before the CDC and allows the offender to waive their appearance before the CDC.
- *Monthly Discipline Log* is provided by the RRM and used to track the offender discipline process over the course of each month.

2. PROCEDURES UPON ADMISSION TO DRC

The contractor will develop a packet summarizing the disciplinary system to include BOP prohibited acts and contractor's rules of conduct. Offenders will be given the packet when they first arrive at the DRC as part of the orientation program. A signed receipt is to be obtained from each offender acknowledging a copy of the packet was received and is to be placed in the offender's file.

The contractor will, to the extent reasonably available, have a qualified staff member or translator to help offenders who have language or literacy issues understand the BOP disciplinary rules. When a significant portion of the offender population speaks a language other than English, the packet is to be made available in that language. The contractor will post copies of the rules at a prominent location which is accessible to all offenders.

3. BOP INCIDENT REPORT

Staff will prepare an incident report on all major violations that are not subject to informal resolution. The BOP encourages informal resolution for minor regulation violations when appropriate (requires consent of both parties). Reporting staff will complete Part I of the incident report.

When a volunteer observes a violation, the volunteer will submit a written description of the incident to the contractor, who will complete the BOP incident report. In addition, staff may complete an incident report based on information from a police report. The charge may be translated into terms of the prohibited acts. A telephone report from an approved laboratory of a positive urinalysis is sufficient evidence to write a report; however, documentary confirmation must be obtained before the formal hearing.

Staff will give each offender charged with violating a BOP prohibited act a written copy of the charge(s) against the offender, ordinarily within 24 hours of the time staff became aware of the offender's involvement in the incident. This is accomplished by providing the offender a copy of PART I of the incident report. The staff member will note the date and time the offender received a copy of the incident report. In instances where there are delays, a justification will be documented in memo format and included in the CDC packet.

4. INVESTIGATION

Staff will conduct the investigation promptly unless circumstances beyond the control of the investigating officer intervene. The Facility Director or designee will appoint an investigating officer ordinarily within 24 hours of the time the violation is reported. Staff writing the report may not investigate the report. The investigation will be initiated and ordinarily completed within 24 hours of this appointment. If the investigation cannot be completed in three days, the contractor will document the reasons and notify the RRM.

5. FORMAL HEARING

The contractor will designate and train two or more staff members to hold formal hearings upon completion of investigations. When the offender is removed from the DRC program and held in local detention (within a 50-mile radius), an in-person hearing will be conducted at the local facility unless the offender waives the in-person hearing. If circumstances do not allow for the in-person hearing (e.g., permission cannot be obtained by the holding official or the offender is on escape status), the CDC will conduct the hearing in absentia and notify the RRM. An in-person hearing must be conducted upon offender return to BOP custody and prior to submission of the CDC packet to the DHO. A CDC hearing conducted via

telephone or video conference with the offender is acceptable to meet the in-person hearing requirement.

6. DRC EXCEPTIONS/CLARIFICATIONS TO BUREAU OF PRISONS' INMATE DISCIPLINE PROGRAM STATEMENT

Prohibited Acts Not to be Used in a DRC Without Consultation with RRM:

- 108 Possession, manufacture, introduction, or loss of a hazardous tool (*tools most likely to be used in an escape or escape attempt or to serve as weapons capable of doing serious bodily harm to others; or those hazardous to institutional security or personal safety; e.g., hacksaw blade, body armor, maps, handmade rope, or other escape paraphernalia, portable telephone, pager, or other electronic device*)
- 197 Use of the telephone for an illegal purpose or to commit or further a Greatest category prohibited act
- 296 Use of the mail for abuses other than criminal activity which circumvent mail monitoring procedures (*e.g., use of the mail to commit or further a High category prohibited act, special mail abuse; writing letters in code; directing others to send, sending, or receiving a letter or mail through unauthorized means; sending mail for other offenders without authorization; sending correspondence to a specific address with directions or intent to have the correspondence sent to an unauthorized person; and using a fictitious return address in an attempt to send or receive unauthorized correspondence*)
- 297 Use of the telephone for abuses other than illegal activity which circumvent the ability of staff to monitor frequency of telephone use, content of the call, or the number called; or to commit or further a High category prohibited act
- 396 Use of the mail for abuses other than criminal activity which do not circumvent mail monitoring; or use of the mail to commit or further a Moderate category prohibited act
- 397 Use of the telephone for abuses other than illegal activity which do not circumvent the ability of staff to monitor frequency of telephone use, content of the call, or the number called; or to commit or further a Moderate category prohibited act

7. DRC CLARIFICATIONS OF INMATE DISCIPLINE POLICY ESCAPES

In accordance with P.S. 5270, Inmate Discipline Program, an offender who escapes from any non-secure institution, including community confinement, may be charged with a Code 102 prohibited act.

However, if the offender voluntarily returns to an approved location within four hours, the offender may be charged with a Code 200 prohibited act. An escape is defined as a departure from custody without permission or authority or before release.

DRC staff is responsible for accounting for an offender's location. The time frame for an escape begins at the time DRC staff cannot verify an offender's location, and as such, the offender is unaccountable. When reporting the escape, it is essential DRC staff provide all pertinent information to include the exact time the offender was last accountable.

The specific elements of the offense, to include date, time, place, DRC staff actions, and any other pertinent information must be clearly outlined in the *Escape Report (EMS-A907.073)* and the *Incident Report (BP-A025)*. DRC staff is to be reminded to accept any offender who returns to an approved location, regardless of the time frame. In such cases, DRC staff should immediately notify the RRM (or designee).

8. TECHNICAL ESCAPE

A technical escape is an escape due to community arrest. A technical escape due to criminal behavior prior to the offender's current period of incarceration does not require an *Incident Report* be completed. However, escapes for arrests for new criminal behavior require an *Incident Report* be issued and the discipline process followed regarding suspension of the report pending criminal investigation. As required by P.S. 5553, Escape/Deaths Notifications, escape reports are required for technical escapes.

9. ELECTRONIC DEVICES

DRCs permit offenders to possess electronic devices, such as portable media devices or cellular telephones, and have rules for the use of this equipment. If an offender in a DRC violates the DRC's established rules regarding the use and possession of electronic devices, the most appropriate prohibited act code would most likely be Violation of a Condition of a Community Program (Code 309).

10. ALCOHOL

Alcohol-related misconduct is a Greatest severity offense (100 level). As all Greatest and High (200 level) severity offenses must be referred to the Discipline Hearing Officer (DHO) for final disposition, it is important for RRM and DRC staff to exercise their discretion when determining if the offender should be removed from the DRC program. Each decision to remove an offender from the DRC program should be made on a case-by-case basis taking into consideration progressive discipline and circumstances of the offense.

11. SYNTHETIC NARCOTICS

If an offender is suspected of using synthetic narcotics, a urinalysis test should be completed. If returned with positive results for the use of narcotics, a 100 level Incident Report should be issued. In this case, the body of the report and comments on the RRM disciplinary failure log should clearly indicate the offender was in possession of synthetic narcotics. This type of Incident Report should be routed through the DHO for disposition. If the substance does not test positive for narcotics but is recognized as a prohibited substance under the DRC's facility rules, the offender should be issued an Incident Report for Possession of Anything Unauthorized.

CHAPTER 13 - ADMINISTRATIVE REMEDY

The contractor will establish a written grievance procedure and make it available to all offenders as part of the initial orientation to the facility. Additionally, the grievance procedures shall be posted in a location accessible to all offenders.

The contractor will comply with P.S. 1330, Administrative Remedy Program. Staff must be familiar with this policy prior to working with federal offenders and provide the required forms for offenders to file grievances.

CHAPTER 14 - MEDICAL SERVICES

The contractor will provide offenders an opportunity to access medical care and treatment. The intent is to assist the offender in maintaining continuity of medical care and treatment in accordance with the requirements of this SOW.

1. ON-SITE FIRST AID

The contractor will provide on-site emergency first aid and crisis intervention to include a first aid kit, trained staff in basic first aid, and policy that outlines steps employees take in case of an emergency. The contents of the first aid kit will meet and be maintained by the standards set by the American Red Cross, *Required First Aid Kit Contents*, Attachment H. An AED will be provided on site for medical use and staff will be trained in the usage of the AED for emergent use.

2. NALOXONE/NARCAN

The contractor will maintain a supply of Naloxone when allowable under state laws and regulations to be used in the event of a suspected opioid overdose. The facility will ensure all staff are properly trained in the use of Naloxone. Naloxone kits will be readily available to all staff along with other first aid kits. If Naloxone is utilized on-site, EMS must be called immediately.

3. CONTRACTOR STAFF FIRST AID TRAINING

The contractor will ensure all staff, prior to working with federal offenders, are certified in cardiopulmonary resuscitation (CPR), and trained in the use and administration of an automated external defibrillator (AED) and Narcan administration prior to working with federal offenders unless a plan of action has been submitted and approved in writing by the RRM with concurrence of the CO. In addition, the contractor will ensure staff is trained to respond to health-related situations to include universal precautions and suicide prevention.

4. OFFENDER MEDICAL INFORMATION AND CONSENT

The contractor will develop and use a consent form which gives the contractor access to an offender's medical information if the offender becomes hospitalized and is physically unable to provide this consent. This consent will be in writing and meet all local standards, laws, and regulations unique to the contractor's place of performance. This consent will be secured by the contractor during the intake screening process and filed in the offender's file.

5. OFFENDER MEDICAL EXPENSES

All medical and pharmaceutical services for RRMB offenders require approval by the Health Systems Specialist (HSS) or designee via R3M or as otherwise determined by the government.

To the maximum extent practicable, all services shall be obtained through the comprehensive medical contractor in-network providers. All requests for care shall include a description of the types of treatment being requested, insurance coverage (e.g., private, Medicare/Medicaid), offender's address and work schedule.

If Medical Services are to be provided on behalf of the BOP by an outside contractor, the following procedures shall replace the language found above (Chapter 14 - Medical Services, 5. OFFENDER MEDICAL EXPENSES):

A. All offender requests (non-emergency/routine follow-ups):

1) The offender advises the DRC that he/she requires medical services (non-emergency/routine follow-ups).

2) The DRC notifies the Bureau of Prisons (BOP) Health System Specialist (HSS) that medical services are required, by submitting a Request for Medical Treatment and Reimbursement form via R3M.

3) The HSS or designee will approve or deny the requested medical services, notify the DRC and, if approved, the BOP's provider. Notification of the approval or denial will be electronic (via email and/or R3M).

4) Upon receipt of approval, the BOP's Comprehensive Medical Contractor will schedule an appointment with an approved medical provider and forward appointment information to the DRC provider within 14 calendar days, and then forward the appointment information to the DRC electronically (via email and/or R3M).

5) Once the DRC receives appointment notification, the offender will be provided the appointment information via the approval form and shall attend the appointment as scheduled. The offender must take the approval form with them to all routine appointments/pharmacy. If an offender is unable to attend the appointment due to an unforeseen emergency, the DRC shall immediately notify the BOP's Comprehensive Medical Contractor electronically (via email/or R3M).

6) The BOP's Comprehensive Medical Contractor will seek reimbursement from the BOP for all medical expenses submitted and approved by the BOP.

B. Emergency medical and pharmaceutical services:

1) In an emergency, the contractor will obtain the necessary

emergency medical treatment required to preserve the offender's life. The contractor will immediately notify the RRM of emergency treatment.

2) Once the provision of emergency medical care has been initiated and the situation has stabilized, but not later than the next business day, the DRC will notify the BOP's HSS or designee that emergency medical services were required, by submitting a Request for Medical Treatment and Reimbursement form via R3M.

3) Once approval has been given, the BOP's Comprehensive Medical Contractor will be notified via R3M that emergency medical services were required, and the BOP's Medical Contractor will negotiate costs and seek reimbursement from the BOP.

4) For emergency prescriptions that need to be filled after hours or on the weekends, the DRC will be provided an Emergency RX Form which will need to be filled out by the DRC. The offender will need to take the Emergency RX Form along with the prescription to the BOP's provider network pharmacy. The DRC will need to enter the emergency prescription through R3M the next business day.

C. Pharmaceutical services for all new requests:

1) The offender advises the DRC that they have a prescription due to a recent medical appointment.

2) The DRC submits a Medcert with names of medication listed or copies of prescriptions attached. The HSS or designee will approve or deny requested prescription, notify the DRC and, if approved, the BOP's Comprehensive Medical Contractor. Notification of approval or denial will be electronic (via email and/or R3M).

3) Upon receipt of approval, the BOP's Comprehensive Medical Contractor provider will provide the DRC with an approval and ordering instructions for the DRC to take to the BOP's provider network pharmacy the same day, usually within 24 hours. The network pharmacy will fill the prescription and will bill the BOP's provider.

4) If for any reason an offender is unable to receive his prescription by the BOP's provider network pharmacy, the DRC must immediately contact the BOP RRM and HSS for further guidance.

If services are to be provided by the DRC provider for direct court placements, the following procedures shall be followed:

- The contractor will compile all medical invoices received from the healthcare providers not covered by the comprehensive medical contractor and forward to the BOP, along with an itemized invoice, on a monthly basis by the 10th of each month.

- If non-emergency medical treatment is provided without pre-approval, the costs may not be reimbursed by the BOP.
- Emergency - In an emergency, the contractor will obtain the necessary emergency medical treatment required to preserve the offender's life. The contractor will immediately notify the RRM of emergency treatment.
- If, at any time, an offender appears to have a communicable or debilitating physical problem, the contractor will notify the RRM for approval to make arrangements for an examination. An exception to this requirement is Medical Screening upon the offender's initial arrival to the DRC.
- Upon receipt of invoices for emergency treatment not covered by the BOP Comprehensive Medical Contract, the contractor will compile, and submit in accordance with the below procedures. The government will reimburse the contractor for all emergency medical treatment for BOP offenders.
- The medical invoices should be subtotaled based on the fiscal year in which services were provided. *For an example: If an offender obtained treatment on September 1, 2016 (\$100) and the bill was received in November 2016, another offender received services in November 2016 (\$500) and the bill was received in Jan 2017, then invoice should show a subtotal of services in FY 2016 in the amount \$100 and a subtotal for FY 2017 in the amount of \$500.00.*
- All medical reimbursement supporting back-up information shall include the approved 'Request for Approval for Medical Treatment and Reimbursement' and invoice from the medical provider/pharmacy showing services or goods were rendered or delivered.
- The supporting documentation shall be legible and in the order of the itemized invoice.
- Billing email subject line shall contain the basic information: Medical Invoice, RRM Office, SENTRY Contract Code (3 letter code), Month and year (*i.e.*, "Medical billing-CBR XYZ November 2016").

The BOP reserves the right to negotiate directly with the healthcare provider in an attempt to reduce the invoice amounts. The contractor will then receive an equitable adjustment, via a contract modification, equal

to the amount of the medical invoices or the reduced invoice amount. Upon receipt of funds, the DRC contractor will promptly pay the medical provider.

The contractor must maintain documentation of all invoices as well as payments to healthcare providers for the life of the contract. The BOP reserves the right to audit invoices and payments at any time during the life of the contract.

6. EXAMINATION OF OFFENDERS COMMITTED DIRECTLY TO THE DRC

All cases committed directly to the DRC will be screened in accordance with Attachment B, to identify any medical/mental health conditions which the offender is suffering from which may need medical attention. All cases committed directly to the facility will receive a medical examination, in accordance with Attachment B, within 5 working days after arrival. Special emphasis should be given to chronic health conditions such as diabetes and hypertension, infectious diseases such as TB, HIV and hepatitis, and any mental health problems. However, if an offender is suspected of having an infectious or debilitating health problem through the initial screening process, the contractor will arrange for an immediate medical examination which must occur within one calendar day after arrival.

The examination is to determine any urgent medical or mental health care needs, restrictions from work, and freedom from infectious disease. The contractor will notify the RRM of those offenders with immediate mental or medical health needs and infectious disease. The results will be documented and sent to the RRM with copies to the offender's file. These procedures are for the protection of the patient and other offenders and staff.

The complete health examination will include relevant diagnostic procedures. All offenders should be tested for TB (PPD test and if positive, a chest x-ray), and any other infectious/communicable diseases if clinically indicated.

Health examinations for offenders committed directly to a DRC, will be paid by the contractor who will then request reimbursement in accordance with procedures previously identified for non-emergency medical care. No pre-approval of health examinations covered in this section is necessary.

If indicated by the RRM, the offender's medical examination may include a blood test for DNA classification. Test kits will be provided by the government at no charge to the contractor or medical facility.

7. INFECTIOUS DISEASE

The contractor will observe universal precautions. This method of infection control requires all employees to assume all human blood and specified human body fluids are infectious for HIV, HBV, and other blood

borne pathogens. Where differentiation of types of body fluids is difficult or impossible, all body fluids are to be considered as potentially infectious.

The contractor will implement a written Exposure Control Plan per OSHA 29 CFR 1910.1030. This written plan, at a minimum, shall address:

- Occupational exposures
- Annual Updates
- Universal Precautions
- Engineering Controls
- Work practice controls
- Provide Personal Protective Equipment
- Available Hepatitis B Vaccinations to all workers with occupational exposure
- Use labels and signs to communicate hazards
- Provide information and training to staff
- Maintain worker medical and training records

8. AFFORDABLE CARE ACT (ACA) (P.L. 111-148)

The Patient Protection and Affordable Care Act (P.L. 111-148) requires U.S. offenders to be enrolled in an approved health insurance plan beginning January 1, 2014. While incarcerated persons are excluded from the requirement, they are required to enroll upon release. Therefore, to assist offenders in meeting the requirements of this law, the DRC will ensure internet and phone access at the DRC facility is made available to all offenders in order to facilitate the application process. Information regarding the application process is available on the website www.healthcare.gov. Internet and phone access at the DRC facility must also be made available for offenders to access State Medicaid or Marketplace Navigators/Certified Application Counselors that provide free assistance. The Bureau may, at its discretion, provide materials for distribution to federal offenders of the DRC.

The DRC is required to provide Affordable Care Act application information to each offender during the intake process. Progress, or lack of, toward obtained healthcare coverage prior to release must be documented in

progress reviews and PRTs.

Prior to release, each offender will be surveyed to determine if they applied for a health insurance plan. The offender's self-reported information regarding their application for health insurance will be documented in a tracking log that indicates one of the following:

- Offender applied for coverage
- Offender's application is pending
- Offender has not applied to date
- Offender declined to register

Offenders' self-reported information will be made available by the DRC to the RRM upon request.

CHAPTER 15 - RECORDS AND REPORTS

The contractor will ensure records are safeguarded from unauthorized and improper disclosure. When any part of the information system is computerized, a security system must be in place to ensure confidentiality is maintained.

1. OFFENDER FILE

Several sections of this SOW require the contractor to maintain records on offenders, which are considered to be part of the offenders' files. The contractor will maintain a file on each offender that includes all significant decisions and events relating to the offender, and at least the following information:

- Documented legal authority to accept offender
- Case information from referral source, if available
- Case history/social history
- Medical record, when available
- Initial intake information form
- Signed acknowledgment of receipt of facility rules
- Signed acknowledgment of receipt of disciplinary policy
- Signed release of information forms, including medical and any other consent forms
- Individualized Program Plan
- Evaluation and IPP progress notes
- Current employment data
- Record of offender's finances
- Grievance and disciplinary record
- Referrals to other agencies
- Terminal report

In order to facilitate the planning, implementation, and evaluation of

programs, documents maintained in the files will be dated and signed by the staff member making the entry.

The contractor will provide a method to account for each file and will ensure documents are filed in a timely manner. Contractors will develop a policy for conducting and documenting weekly offender file accountability checks. The policy will be reviewed and approved during the pre-occupancy inspection.

2. CONTRACT RECORDS

Documents unique to contract performance as specified above are the property of the BOP. All records related to contract performance will be retained in a retrievable format for the duration of the contract. Except as otherwise expressly provided in this SOW, the contractor will, upon completion or termination of the resulting contract, transmit to the BOP all records and/or documents related to the performance of the contract.

3. DOCUMENTATION

A. Sign in/Sign out System - The contractor will monitor and maintain documentation of visitors, contractors, and volunteers entering or exiting the DRC by using a sign in/sign out system.

B. Employment - The contractor will maintain documentation of an offender's employment and/or unemployment. Documentation will include:

- the offender's name and register number
- date of arrival and date employed
- list of offenders who have not obtained employment 30 calendar days from their arrival

C. Searches - The contractor will maintain documentation of all searches conducted in the facility.

D. Urine Sample Testing - The contractor will maintain documentation of all urine samples taken from offenders.

E. The contractor will complete the BOP form *Urine Sampling Program (DRCs)* on a monthly basis and submit it to the RRM. The contractor will also send a copy of this report to the Chief USPO.

F. Alcohol Testing - The contractor will maintain documentation of all alcohol tests taken from offenders.

The RRM, in concurrence with the CO, may require additional documentation.

4. QUARTERLY REPORTING

The contractor will provide quarterly statistics (based on the calendar year) to the BOP regarding:

Placement and Release Statistics

- Total number of offenders currently on home confinement
- Number of admissions to home confinement and releases from custody in last quarter
- Number of revocations from home confinement
- Average length of stay on home confinement for home confinement offenders who release from custody within the last quarter
- Ratio of DRC staff to DRC offenders

Employment Arrivals

- Total number, and percentage, of home confinement offenders admitted during the last quarter who have secured: (1) permanent full-time employment and (2) part- time or temporary employment

Releases

- Total number, and percentage, of home confinement offenders released during the last quarter who have secured: (1) permanent full-time employment and (2) part- time or temporary employment

Total

- Total number, and percentage, of home confinement offenders who have secured: (1) permanent full-time employment and (2) part-time or temporary employment
- Average hourly wage for DRC offenders
- Total number, and percentage, of employed DRC offenders whose income is below the nationally published Local Poverty Guidelines.

Identification

- Total number of offenders who arrived with identification from a BOP facility.
- Total number of offenders who obtained identification while at the DRC.

6. CONFIDENTIALITY

The Privacy Act and Freedom of Information Act (FOIA) set forth a series of requirements governing federal agency record keeping practices intended to safeguard individuals against invasions of personal privacy. The determination of what information may be released requires staff to have a basic understanding of both the FOIA and the Privacy Act. Staff should also be aware the Privacy Act establishes criminal penalties and civil liabilities for unauthorized disclosures.

The contractor will not release any BOP document to an offender without the approval of the RRM.

The contractor will not release information about an offender to any individual without obtaining a signed release of information from the offender and the approval of the RRM.

BOP documents sought by subpoena, court order, or other court requests are subject to the approval of the Attorney General or his or her designee before they may be released. The guidelines are set forth in 28 CFR §16, subpart B. Accordingly, if a contractor receives such a request, they will consult with the RRM regarding proper handling of the request.

Particular care must be taken by the contractor to protect the Pre-Sentence Report (PSR) from third-party disclosure. The PSR may not be copied or distributed to any sources, to include the offender. Offenders may be allowed to view their individual PSR under supervision of staff but are not to be provided a copy. The PSR must be shredded upon the offender's release, termination, escape, or death. Contractors must consult with the RRM and follow Bureau instructions for safeguarding the PSR. Upon completion of the contract, the contractor will certify all PSR documentation has been properly destroyed. All questions are to be directed to the RRM.

CHAPTER 16 - RELEASE PROCEDURES

The contractor will ensure timely and appropriate release/transfer of offenders from the DRC. The contractor will provide written procedures for staff to follow prior to releasing an offender. These procedures will include, at a minimum, the following:

- Verification of identity
- Verification and completion of release papers
- Notification to the USPO for offenders with supervised release condition
- Arrangements for completion of any pending action
- Arrangements for community follow-up, if required
- Forwarding address and telephone number

1. RELEASE PLANNING

The contractor will have written procedures for establishing a formal release plan for offenders and execute appropriate release certificates. At a minimum, the plan will include:

- offender's verified release residence (home confinement location)
- employment and/or enrollment in a training program
- medication needs
- follow-up appointments for medical, mental health and/or substance use treatment

If the offender has a supervised release term (SRT), the DRC will submit a release plan to the USPO at least six weeks before the release date. In addition, the DRC will submit a copy of the release plan to the RRM at least 30 days prior to release to facilitate release notifications.

A. Parole Releases - For offenders who are subject to Parole conditions (as indicated by the RRM), staff will submit the release plan, along with a parole certificate request, to the U.S. Parole Commission (USPC). Parole certificates are emailed, mailed, or faxed to the DRC directly from the USPC. The contractor will consult with the RRM to ensure the number of days remaining to be served is accurate and any special conditions are noted on the reverse side of the parole certificate prior to the offender being released from the DRC. The contractor will mail the

signed parole certificate to the RRM.

Conditions of release must be read to the offender and the offender's signature must be witnessed and dated by a staff member. This is to be obtained on each of the parole certificates and SRT certificates, when applicable. Each page of the certificate is signed individually, in pen, and is not carbonized. Release on parole is not effective without the offender's signature. Copies are distributed as follows:

- original to offender
- copy to USPO
- "institution copy" to RRM
- copy to USPC Office

B. Supervision Following BOP Release - If an offender is releasing to some type of supervision, the contractor must advise the offender to report to the USPO within 72 hours of release from the DRC. The contractor will notify the USPO of the offender's release by emailing or faxing the *Notice of Release and Arrival* form to the USPO.

2. CLOTHING, FUNDS, AND TRANSPORTATION

The BOP provides clothing, funds, and transportation based upon need at the time an offender is transferred to a DRC. In unusual circumstances, such as the location of the DRC or the conditions of an offender's confinement in a DRC, the need may arise for the contractor to provide clothing, funds, and transportation.

The contractor will develop and submit an itemized plan for an offender's clothing, funds, and transportation needs to the RRM for approval at least one week prior to release. If approved, the contractor will provide the approved release funds, clothing, and/or make the necessary transportation arrangements for the offender.

Documentation (i.e., paid invoices), will be forwarded with the quarterly billing. The contractor will be reimbursed by the government for RRM approved release clothing, funds, and transportation.

3. TYPES OF RELEASES

For information regarding release types, refer to P.S. 5800, Correctional Systems Manual.

4. RELEASE DOCUMENTS

The contractor will verify all release documents with the RRM five working days prior to release. The contractor will ensure all release documents have original signatures, are dated, and appropriately distributed. The contractor is responsible for obtaining release documents which may include the following:

- Parole Certificate
- Mandatory Release Certificate
- Special Parole Term Certificate
- Conditions of Supervision
- Notice of Release and Arrival
- Notice to the U.S. Attorney of Release of Offender with Criminal Fine

The contractor will complete a terminal report on all releasing offenders. The report will address all elements listed in the IPP progress notes and program plans. Distribution is to be accomplished via electronic transmission or mail with copies as follows: original to offenders' parent institution, copy to the RRM, USPC (if applicable), and to the appropriate USPO.

Upon an offender's actual release, the contractor will immediately notify the RRM via R3M.

5. FILES

Upon completion or termination of the offender's program, the contractor will electronically forward the terminal report to the Case Management Coordinator at the Bureau parent institution within five working days with copies to the RRM, USPC (if applicable), and to the appropriate USPO. The contractor will shred the BOP referral packet (e.g., PSR, J&C, SOR). Referral information stored electronically will be deleted from the contractor's data system. The contractor may retain public information which can identify former offenders, copies of research data which have been depersonalized, and copies of reports generated by the contractor. Upon termination of the contract, the contractor will notify and certify all records were properly disposed.

CHAPTER 17 - ESCAPE PROCEDURES

An escape occurs when an offender fails to remain in custody by:

- not reporting to the DRC for admission at the scheduled time
- not remaining at the approved place of employment or training/treatment during the hours specified by the terms of the employment or training/treatment program
- not returning to the DRC at the time prescribed
- not returning to home zone at the time prescribed
- not locatable while on authorized furlough
- not returning from an authorized furlough site at the time and place stipulated
- not being locatable by facility staff
- not responding/returning DRC calls and contacts
- not abiding to conditions of employment and/or conditions of day reporting
- being arrested for new or old criminal charges
- leaving the home, job, or approved destination without staff permission.

1. CONTRACTOR STAFF ACTION

The contractor will provide written procedures to ensure all staff understand what constitutes an escape and appropriate procedures for reporting an escape. These procedures will include instructions to reasonably attempt to locate the offender, which may include going to the authorized location or residence. The contractor will develop step-by-step procedures addressing the following:

- A review of GPS movement
- internal notification
- telephone contact to offender cell phone, if applicable
- telephone contacts where the offender has signed out

- telephone inquiries to determine if the offender has been arrested or injured

The above procedures must take no more than 30 minutes to complete from the time the DRC was not able to immediately locate and account for the offender. The BOP must be notified via phone no later than 15 minutes upon completion of the DRC escape procedures. It is the offender's responsibility to ensure established schedules are followed and the DRC is notified if unable to report/return to the approved destination at the authorized time.

Facility staff may modify a return time upon receiving justification and subsequent verification for late arrival. At no time will this exceed one hour without notification to the DRC Director. Any modification of initial reporting time to the DRC must be coordinated and approved by the RRM/BOP Duty Officer.

If all efforts to locate the offender have failed, the DRC Director will immediately notify the RRM/BOP Duty Officer. The contractor will provide all the necessary information needed for the RRM/BOP Duty Officer to complete escape notifications. This responsibility cannot be delegated below the duty officer of the DRC. The contractor will prepare an incident report for offenders classified as Escape and Technical Escape for new charges and conduct a discipline hearing in accordance with guidelines established in the current version of the P.S.5270, Offender Discipline Program. The contractor should not write an incident report on offenders who are classified as Technical Escape - Old Charges.

2. USPO CASES

USPO cases are not in the custody of the BOP and cannot be considered escapees. These offenders are referred to as absconders. When they are deemed unaccountable, the contractor will immediately advise the supervising authority or follow locally coordinated procedures with the supervising authority. When an offender absconds during normal business hours, the contractor will notify the RRM the same day it happens. When an offender absconds after normal business hours, the contractor will notify the RRM the next business day.

3. FISCAL IMPACT

The BOP does not pay the contractor for the day of the escape.

4. PREVENTATIVE MEASURES

Offenders with Public Safety Factors (PSF) or any special needs cases exhibiting unusual behavior require closer attention and reporting to the RRM.

If an offender receives an incident report that may cause program failure, the contractor will contact the RRM prior to issuing the report. The RRM will consider coordinating the issuance of the report with the USMS assuming custody of the offender.

5. ESCAPE RETURNS

The contractor will allow any offender who has been considered in escape status to return to the DRC or approved home confinement residence, unless the offender presents a significant safety or security issue to the facility, household occupants, community, or staff.

Anytime an offender returns from escape, the contractor will immediately notify and consult with the RRM/BOP Duty Officer so an appropriate action plan can be determined. Ordinarily, in cases where the offender was placed on Technical Escape - Old Charges they will not be failed from the program. In this type of case, consultation must be made with the RRM/BOP Duty Officer as to the status of the offender. The DRC facility will be the primary site for USMS pickups of community/program failures.

CHAPTER 18 - SERIOUS ILLNESS, INJURY, OR DEATH

The contractor will immediately notify the RRM/BOP Duty Officer when an offender becomes seriously ill, requires emergency medical treatment, or dies. The most current SIR format as updated by RRMB will be submitted electronically to the RRM/BOP Duty Officer after telephonic notification. In the event of the offender's death, the contractor will notify the offender's family or next of kin.

Immediately upon the death of an offender, the contractor will assemble and advise the RRM/BOP Duty Officer of the following information concerning the deceased offender:

- Name, register number, date of birth
- Offense and sentence
- Date, time, and location of death
- Apparent cause of death
- Investigative steps being taken, if necessary
- Name and address of survivor or designee
- Notifications made
- Status of autopsy request
- Brief medical history related to death

The contractor will consult with the RRM/BOP Duty Officer to ensure appropriate notifications are made. The contractor will also arrange for the fingerprinting of the thumb of the right hand to be taken, and staff will date and sign the fingerprint card to ensure positive identification has been made. The fingerprint card will be uploaded into R3M.

If death is due to violence or an accident, surrounded by unusual or questionable circumstances, or is sudden and the deceased was not under medical supervision, staff will notify appropriate law enforcement officials of the local jurisdiction. The purpose of this notification is to review the case and examine the body, if necessary. Autopsy requests will be forwarded or initiated by the RRM/BOP Duty Officer who will consult with other BOP staff and make determinations regarding need for autopsy.

When there is no longer an official interest in the body, it may be

turned over to family members or next of kin as indicated on the offender's intake form. Should the family decline the body or be unable to afford funeral expenses, the contractor will compile a list of local burial/funeral providers and contact the RRM for disposal instructions.

CHAPTER 19 - RESEARCH AND EVALUATION

The BOP does not operate DRC facilities using BOP staff and is therefore dependent upon data generated and maintained by the contractor for research and evaluation purposes.

The contractor will participate in all research studies as directed by the BOP.

The contractor will be responsive to all BOP surveys, data collection requests, questionnaires, or pilot programs, in a timely manner.

Pilot programs/studies may include, but are not limited to, program plans, offender adjustment, discipline, prognosis for success, technology changes, etc.

The Contractor will not participate in any research studies or data collection efforts using information from BOP or USPO offenders without prior approval from the RRM.

CHAPTER 20 - BOP INSPECTIONS

The objective of BOP inspections is to ensure the contractor is compliant with applicable laws, regulations, policies, and contract requirements, and to ensure that fraud, waste, abuse, mismanagement, and illegal acts are prevented, detected, and reported.

The contractor will receive feedback from inspections in the form of monitoring reports or direct correspondence. This feedback may identify deficiencies which the contractor must remedy. A deficiency is determined when evidence indicates the contractor has failed to meet the performance requirements of the contract. Evidence that supports a deficiency will be factually sufficient to lead a person knowledgeable in the program area to come to the same conclusion as the reviewer.

The BOP reserves the right to determine the resources necessary to perform all inspections and monitoring visits (e.g., number and type of staff, number of working days) as defined in this chapter.

1. PRE-OCCUPANCY VISIT

After contract award, but before the CO issues the "notice to proceed," the BOP may conduct a preoccupancy visit at the facility. During this visit, the BOP will determine the contractor's ability to begin performance by inspecting, at a minimum, all emergency plans and life/safety issues for compliance with the SOW. The preoccupancy inspection for incumbent contractors may be postponed to coincide with the first full monitoring if no life/safety issues were identified during the pre-site inspection.

A. Emergency Plans - After contract award, but before the CO issues the "notice to proceed," the contractor will submit to the RRM a complete written copy of the facility's emergency plans as required in the SOW. The emergency plans will include detailed plans for 24/7 accountability of all offenders if the DRC facility becomes unusable for any reason.

B. Life/Safety Issues - After contract award, but before the CO issues the "notice to proceed," the contractor will be in compliance with all life safety issues as required by the SOW, unless otherwise indicated by the RRM.

2. OTHER VISITS

The contractor will accept and accommodate visit(s) or inspection(s) by the BOP, USPO, or an investigative authority as indicated in the SOW, or upon direction of the RRM, at any time during the life of the contract. Other visits may occur for the purpose of training or to resolve general contract issues.

3. FULL MONITORING

A full monitoring is a comprehensive inspection and review of all aspects of the contractor's operation and facility. The first full monitoring ordinarily occurs 60-90 days from the date performance begins. Ordinarily, the contractor is given advance notice of an upcoming full monitoring. A full monitoring may take several days, and a monitoring report will be generated.

A monitoring report contains all the deficiencies as determined by the reviewer(s). The contractor will respond in writing to the RRM within 30 days of receipt of the report (unless otherwise directed by the RRM). The contractor's response will include any issues addressed in the monitoring report and specify plan(s) of action for correction. The contractor will also indicate a realistic time frame/date when each correction will be completed. This in no way releases the contractor from performing the requirements of the contract.

4. INTERIM MONITORING

An interim monitoring is an unannounced on-site examination. Ordinarily, during the interim monitoring, the BOP inspects, but is not limited to, those areas which have previously been identified as deficiencies.

Following an interim monitoring, the contractor will receive a letter acknowledging the interim monitoring from the RRM. The letter will also indicate all areas found non-compliant. The contractor will respond in writing to the RRM within 30 days of receipt of the report (unless otherwise directed by the RRM).

The contractor's response will include any issues addressed in the monitoring report and specify plan(s) of action for correction. The contractor will also indicate a realistic time-frame/date when each correction will be completed. This in no way releases the contractor from performing the requirements of the contract.

Prior to a monitoring and/or other visit, BOP staff may query contractors concerning community meetings they may want to attend during their inspections.

5. REMOTE MONITORING

A remote monitoring is an evaluation of the contractor's performance that is conducted from the RRM office. To facilitate the monitoring, the RRM will request specific documentation and indicate the means and time frames by which this information should be submitted (e.g., electronically, facsimile or mailed). If the contractor is utilizing web-based electronic programs for the accountability or management of offenders, they must provide remote access to BOP staff upon request.

6. CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM (CPARS)

CPARS is an automated system in which contractor performance is reported. Performance is measured annually by the COR. The rating period represents 12 months of contract performance and ordinarily is conducted at the end of each performance period. The COR electronically, via CPARS, sends the evaluation to the CO who reviews the document then releases it to the contractor for comments via CPARS. The contractor will have 30 calendar days to make comment and return the form to the CO.

7. RESPONSIBILITIES OF THE CONTRACTOR

The contractor will respond to all inspections, monitoring reports, evaluations, and RRM inquiries within the appropriate time frame.

The contractor's response must indicate the areas of non-compliance have been corrected or provide a plan that includes time frames to correct deficiencies.

The contractor will take appropriate actions to correct deficiencies and improve operations and ensure adequate administrative controls and monitoring systems are in place to prevent the deficiency from recurring. Failure to respond to the direction given by the COR or the result of the monitoring reports could result in adverse contract action.

8. REPEAT DEFICIENCIES

A repeat deficiency is a serious issue. Therefore, the authorized negotiator will provide a separate response to the RRM, with a copy to the CO, specifically addressing the repeat deficiency. (This is in addition to the Facility Director's response to the RRM.) The authorized negotiator must describe the measures and internal controls to be implemented to ensure the problem will not occur again, as well as explain why the problem was not corrected from the prior review. The authorized negotiator's response is due no later than five calendar days after receipt of the report.

CHAPTER 21 - BILLING, DEDUCTIONS, AND REIMBURSEMENTS

The requirements of this chapter do not modify or waive the rights of the BOP to terminate a contract for default under the terms and conditions of the contract.

1. BILLING

The contractor will provide the designated BOP office with an accurate and complete invoice no later than the 10th of every month. The monthly invoice will include a report of each offender's finances detailing total hours worked, and any financial obligations (e.g., restitution, fine payments, court- ordered child support) paid by the offender.

For processing, an invoice must include an invoice number, the contract number, dates of service and an accurate billing rate for the current performance year. For billing purposes, one (1) home confinement day or one (1) furlough day equals one (1) offender day. The BOP does not pay the contractor for the day of an escape.

Billing for reimbursable miscellaneous expenses (e.g., identification cards, release clothing, direct placement physicals, etc.) shall be billed separate from the monthly service invoice and billed on a quarterly basis. The contractor will then receive an equitable adjustment, via a contract modification, equal to the amount of the reimbursable miscellaneous expense. Documentation (i.e., paid invoices), will be forwarded with the quarterly billing. The contractor will be reimbursed by the government for RRM approved release clothing, funds, and transportation.

2. DEDUCTIONS

When a contractor fails to respond to an inspection report or repeatedly fails to correct documented deficiencies, the BOP may increase the number of inspections and charge the contractor for the reasonable costs associated with these visits. If the BOP must repeatedly visit facilities above the routinely scheduled activity of monitoring and training, the contractor may be required to reimburse the BOP for all reasonable costs associated with providing technical assistance, training, and oversight required to improve the contractor's performance to a satisfactory level. These costs will be deducted from the monthly billing to the government.

In addition, the contractor will be subject to government deduction when and if they have been found to be in non-compliance with the conditions of the contract. Once the contractor has been informed of a problem, and does not comply within the specified time, they will be notified of the pending deduction and the basis for the deduction by the CO.

3. REIMBURSEMENTS

The BOP will schedule a pre-occupancy inspection following contract award

and before performance. If the BOP must repeatedly inspect the place of performance (e.g., facility and location) due to the contractor's failure to complete necessary facility repairs or renovations, or failure to meet minimum program requirements so performance may begin, the contractor may be required to reimburse the BOP for all reasonable costs associated with a second (or subsequent) preoccupancy inspection. If the contractor is approved to change the place of performance during the contract, reimbursement for the additional preoccupancy inspection may be the responsibility of the contractor. These costs may be deducted from the monthly billing to the government.

CHAPTER 22 - U.S. PROBATION AND PRETRIAL SERVICES

The following provisions apply exclusively to federal defendants on pretrial release and to federal post-conviction offenders, on Probation or serving a Term of Supervised Release, who may be referred under this contract. All are under the jurisdiction of the U.S. Courts. The U.S. Courts may use DRCs to provide rehabilitation, non-custodial incapacitation, and/or to deliver a sanction for non-compliance.

These provisions should not conflict with any terms or requirements otherwise specified in the Statement of Work.

1. ELIGIBILITY

DRC placement for post-conviction offenders provides additional programming and support for offenders who received limited transitional services as they reenter the community or, as an intermediate sanction (See 18 U.S.C. 3672). DRC Placement of post-conviction offenders aims to foster behavior change and reduce recidivism (See 18 U.S.C. 3603(3)). To be eligible for DRC placement, post-conviction offenders should be assigned a Supervision Level of Moderate or High.

Duration of placement for defendants and offenders should generally be no less than 60 days and no more than 180 days.

2. ASSESSMENT AND CASE PLANNING

When referring a post-conviction offender, U.S. Probation/Pretrial Services officers will provide Case Managers with the offender's presentence report, Judgement and Commitment Order, and supervision summary, to include any record of noncompliance. U.S. Probation/Pretrial Services will also provide the output from the most recently conducted Post- Conviction Risk Assessment (PCRA). This should include PCRA risk level, criminogenic needs (i.e., employment/education, substance abuse, cognitions, social networks), any elevated criminal thinking patterns, and responsivity factors. Probation staff will provide prior case planning details (including objectives, strategies, offender strengths and obstacles).

Case managers will collaborate with U.S. Probation/Pretrial Services in developing each Individualized Program Plan (IPP) and in determining the required interventions, including the appropriate modalities, dosage, and duration of each. This will determine the number of days and hours per day for each defendant and offender.

3. PROGRAMMING

Defendants and offenders should generally be involved in programming or other DRC approved activities at all times while in the DRC. They are eligible for all interventions provided by the DRC.

In coordination with the DRCs Employment Placement Specialist, U.S. Probation/Pretrial Services may direct defendants and offenders in the DRC to receive supplemental employment programming, to be paid for by the U.S. Probation/Pretrial Services Office. This may include, but not be limited to, vocational training and subsidized on-the-job training. Such programming may be in lieu of full-time employment.

Offenders may *voluntarily* participate in available programming when such programming is not required by the Court's order.

4. STAFFING

U.S. Probation Services may appoint a Liaison Officer who will be frequently physically present at the DRC, relative to the number of offenders. The Liaison Officer will serve as the primary link between the U.S. Probation/Pretrial Services Office and DRC staff.

The Liaison Officer will serve as a subject matter expert (SME) in federal supervision and will provide assistance and training to DRC staff as needed, as approved by the RRM.

The Liaison Officer shall also be SMEs in regard to actuarial risk assessment (PTRA, PCRA) and core correctional practices and cognitive restructuring (i.e., STARR).

The Liaison Officer will assist the RRM in monitoring the DRCs compliance.

5. DRUG TESTING

The frequency of drug and alcohol testing will be determined by the U.S. Probation/Pretrial Services officer.

6. ADDITIONAL CONTROLLING CONDITIONS

U.S. Probation/Pretrial Services utilizes the containment model for the highest risk offenders. This often requires the inclusion of restrictive conditions and specialized supervision strategies.

Typically, post-conviction offenders who are placed in DRCs should also have a search condition imposed by the court PRIOR to placement, to be enforced by U.S. Probation/Pretrial Services staff at the offender's home residence. Searches are only to be conducted with approval of the Chief Probation/Pretrial Services Officer based upon reasonable suspicion.

7. DISCIPLINE

Any violation of DRC requirements, even those informally resolved, will be reported by the Case Manager to the U.S. Probation/Pretrial Services officer and may be grounds for removal from the DRC.

BP-A1114
MAR 18**Request for Contract Staff Background
Investigation Authorization to Release
Confidential Information****U.S. DEPARTMENT OF JUSTICE****FEDERAL BUREAU OF PRISONS**

Facility: _____

Location Code: _____

Please type all information

LAST NAME		FIRST NAME		MIDDLE NAME OR INITIAL		OTHER NAMES USED	
POSITION OR JOB TITLE		ANTICIPATED HIRE DATE		CRIMINAL HISTORY, IF APPLICABLE			
SEX	RACE	HAIR COLOR	EYE COLOR	HEIGHT	WEIGHT	DOB	
DRIVER'S LICENSE - STATE & NUMBER		SOCIAL SECURITY NUMBER		CITY AND STATE OF BIRTH			

OTHER STATES LIVED OR WORKED IN		

If this is a Key Staff Member, a copy of the applicant's application and resume must be attached. Upon Conditional Approval, a sealed transcript must be sent directly to the RRM office from any schools, colleges or universities identified on the application which substantiate the individual's qualifications to fulfill the position.

Applicant's Acknowledgment:

I authorize the release to the Federal Bureau of Prisons of any information generated as a result of a National Crime Information Center/National Law Enforcement Telecommunications System (NCIC/NLETS) criminal history check on me, or any other information necessary to determine my suitability for work with Federal offenders.

I also understand the Federal Bureau of Prisons may only disclose to the Facility Director or the contractor's authorized negotiator that a record exists that calls into question my suitability for work with Federal offenders at the above-noted facility. Information generated as a result of a NCIC/NLETS criminal history check will not be available to me or my prospective employer. I understand that I may contact the FBI for further information related to the results of the NCIC/NLETS inquiry, following procedures in 28 CFR, Subpart C 16.30-16.34.

I understand that all my records are protected under Federal privacy regulations and cannot be disclosed without my written consent unless otherwise provided for in the regulations. I also understand that I may revoke this consent at any time except to extent that action has been taken in reliance on it. In any event, this consent will cease to be effective after my employment with the above company.

_____ Signature of Applicant The above-listed information is true and correct.	_____ Date	<u>DMV</u>
--	---------------	------------

_____ Printed Name and Signature of Witness (Facility Director or Authorized Negotiator)	_____ Date	<u>NCIC / NLETS</u>
--	---------------	---------------------

_____ BOP Approval/Signature of RRM	_____ Date	<u>WANTS</u>
--	---------------	--------------

Day Reporting Center

Elements of the Medical Examination for Offenders Committed Directly to the DRC

I. Elements of the Intake Medical/Mental Health History (To be completed by DRC Staff)

Abuse Victim History

- a. Sexual (comments) _____
- b. Physical (comments) _____
- c. Emotional (comments) _____
- d. Offender perception of vulnerability (comments) _____

Need for Psychological Referral ___ Yes ___ No

Provider's Comments _____

Mental Health History: Check all that apply.

- ☐ History of Head Trauma
Nature of trauma _____ Date of event _____
Provider's Comments _____
 - ☐ History of Loss of Consciousness
Nature of event/diagnosis _____ Date of event _____
Provider's Comments _____
 - ☐ Current or Prior Mental Health Treatment
Diagnosis (if known) _____ Date(s) of treatment _____
Provider's Comments _____
 - ☐ History of Suicide Attempt(s)
Attempt method(s) _____ Date(s) of attempts _____
 - ☐ Current suicidal ideation ___ Yes ___ No Planned method _____
- Need for Psychological Referral ___ Yes ___ No

Substance Abuse History

- ☐ No licit or illicit drug use
- ☐ Alcohol Type _____ Frequency of use _____ Last Used _____
- ☐ Opiates Type _____ Frequency of use _____ Last Used _____
- ☐ Amphetamines Type _____ Frequency of use _____ Last Used _____
- ☐ Depressants Type _____ Frequency of use _____ Last Used _____
- ☐ Inhalants Type _____ Frequency of use _____ Last Used _____
- ☐ Hallucinogens Type _____ Frequency of use _____ Last Used _____
- ☐ Other drugs Type _____ Frequency of use _____ Last Used _____
- ☐ Current or recent experience of withdrawal symptoms

Need for Substance Abuse Treatment Referral ___ Yes ___ No

Provider's Comments _____

2. Elements of the Physician's Intake Hands-on Physical Assessment (To be completed by Health services examiner)**Vital Signs:**

Pulse _____ Respirations _____ Temperature _____ BP _____
 HT _____ Weight _____ Body Mass _____ SaO₂ _____

Peak Flow _____ Random Blood Glucose _____

Pain Assessment:

Intensity (0-10 scale) _____ Location _____ Duration _____

Aggravating factor(s) _____ Alleviating Factor(s) _____

Oral Health Assessment:

☐ Pain in mouth or teeth _____ Yes _____ No Location _____
☐ Swelling in mouth, jaws or neck _____ Yes _____ No Location _____
☐ Lesion(s) in mouth _____ Yes _____ No Location _____
 Need for Dental Referral _____ Yes _____ No
 Provider's _____

Comments _____

Mental Health Assessment:

☐ Level of Consciousness
 _____ Alert and oriented x 3 (person, place & time)
 _____ Alert and disoriented
 _____ Inattentive
☐ Psychomotor Activity
 _____ Normal Gait _____ Abnormal Gait _____ Hyperactivity/Agitation _____ Hypo-activity
☐ General Appearance
 _____ Well-groomed _____ Disheveled _____ Normal hygiene _____ Poor hygiene
☐ Mood
 _____ Normal affect _____ Disturbed affect
☐ Thought Process and Content
 _____ Logical _____ Confused _____ Irrational
 Need for Psychology/Psychiatry Referral _____ Yes _____ No

Provider's Comments _____

Body Systems Review**a. HEENT**

Head: Face symmetrical _____ Yes _____ No
 Hair appearance _____ Normal _____ Thin _____ Coarse _____ Alopecia
 Eyes: PERRLA _____ Yes _____ No
 EOMI _____ Yes _____ No
 Icterus/conjunctival inflammation _____ Yes _____ No
 Fundoscopic nicking _____ Yes _____ No Fundoscopic discs sharp _____ Yes
 _____ No
 Visual Acuity Right eye _____ Left eye _____
 Ears: Canals patent _____ Yes _____ No
 Tympanic membrane intact _____ Yes _____ No
 Nose: Septum intact _____ Yes _____ No
 Nares patent _____ Yes _____ No
 Polyps _____ Yes _____ No
 Throat: Neck full ROM _____ Yes _____ No Trachea
 midline _____ Yes _____ No Thyroid normal
 Yes _____ No Masses _____ Yes _____ No

- b. Skin: Adenopathy ☐ Yes ☐ No
Rash ☐ Yes ☐ No Lesions
☐ Yes ☐ No
Pigmentation ☐ Normal ☐ Abnormal
Masses ☐ Yes ☐ No
- c. Heart: RRR ☐ Yes ☐ No Normal
S1/S2 ☐ Yes ☐ No Murmurs ☐ Yes
No Carotid Bruits ☐ Yes ☐ No
JVD ☐ Yes ☐ No
- d. Lungs: Clear to auscultation ☐ Yes ☐ No
- If no, sounds are: ☐ wheezes ☐ crackles ☐ rhonchi ☐ consolidation
- e. Abdomen: Hernia ☐ Yes ☐ No
Bowel Sounds ☐ Normal ☐ Hyperactive ☐ No sounds
Tenderness ☐ Yes ☐ No
Masses ☐ Yes ☐ No
Organomegaly ☐ Yes ☐ No
- f. Musculoskeletal
Extremities: Strength in all extremities ☐ Yes ☐ No
Edema ☐ Yes ☐ No
Full ROM all extremities ☐ Yes ☐ No
Pulses all extremities ☐ Yes ☐ No
Deformities/amputations ☐ Yes ☐ No
Spine: Full ROM ☐ Yes ☐ No
Deformities ☐ Yes ☐ No
- g. Genitourinary
Male: External genitalia ☐ Normal ☐ Tenderness ☐ Mass ☐ Lesions Prostate
gland ☐ Normal ☐ Enlargement ☐ Mass ☐ Lesions Discharge
☐ Yes ☐ No
Female: External genitalia ☐ Normal ☐ Tenderness ☐ Mass ☐ Lesions
Pelvic exam ☐ Normal ☐ Tenderness ☐ Mass ☐ Lesions
Discharge ☐ Yes ☐ No
Breast exam ☐ Normal ☐ Tenderness ☐ Mass ☐ Lesions
- h. Neurological
Gait ☐ Normal ☐ Shuffling ☐ Unsteady
Reflexes ☐ Present ☐ Absent

Medications Currently Used

- a. Prescribed _____
b. OTC _____

Comments on Positive Findings ☐ No positive findings Positive findings (see comments)

Referrals for Follow-up

- Labs ☐ No ☐ Yes (specify)
Radiographs ☐ No ☐ Yes (specify)
Specialists ☐ No ☐ Yes (specify)
Primary care ☐ No ☐ Yes (specify)

Treatment Plan

____ No treatment needed at this time

____ Treatment plan specified below (attach additional pages if necessary)

History of Chronic Diseases: Check all that apply and specify condition.

- ☐ Cardiovascular (specify) _____
- ☐ Stroke
- ☐ Hypertension
- ☐ Diabetes: Insulin-dependent ____ Yes ____ No
- ☐ Respiratory (specify) _____
- ☐ Cancer (specify) _____ Current Status _____
- ☐ Hematologic (specify) _____
- ☐ HIV Infection/AIDS
- ☐ Viral Hepatitis Infection: ____ HBV ____ HCV
- ☐ Other chronic diseases (specify) _____

Need for Medical Referral ____ Yes ____ No

Provider's Comments _____

History of Infectious Diseases: Check/circle all that apply.

- ☐ Syphilis, gonorrhea, chlamydia, genital warts and/or genital herpes Date of last treatment _____
- ☐ Varicella – Chicken pox, zoster Date of infection _____
- ☐ Other infectious disease (specify) _____

Need for Medical Referral ____ Yes ____ No

Provider's Comments _____

Allergies

- ☐ Drugs (specify) _____
- ☐ Foods (specify) _____
- ☐ Other allergens (specify) _____

Provider's Comments _____

Infectious Disease Risk Factors

- ☐ IV drug use with shared needles
- ☐ Sexual partner using IV drugs with shared needles
- ☐ Multiple sexual partners in last 5 years
- ☐ Condom use __ Always __ Sometimes ____ Never
- ☐ Sexual partner having HIV, HBV and/or HCV
- ☐ Tattoos
- ☐ Blood product transfusion

Need for Medical Referral ____ Yes ____ No

Provider's Comments _____

TB Screening History

- ☐ Date of last skin test _____ Results in millimeters _____ mm.
☐ Date of last chest x-ray _____ Results _____

If Positive for TB Infection:

- ☐ Treatment completion date _____
☐ Treatment ongoing _____ Yes _____ No
☐ Never treated _____ Yes _____ No

Symptoms of Active TB

- ☐ Blood-tinged sputum
☐ Night sweats
☐ Weight loss (unintentional)
☐ Fever
☐ Cough (duration of 3 weeks or more)

Need for Medical Referral _____ Yes _____ No

Provider's Comments _____

Tobacco Use

Frequency of use _____ Type of tobacco product _____

Mental Health History: Check all that apply.

- ☐ History of Head Trauma
Nature of trauma _____ Date of event _____
Provider's Comments _____
- ☐ History of Loss of Consciousness
Nature of event/diagnosis _____ Date of event _____
Provider's Comments _____
- ☐ Current or Prior Mental Health Treatment
Diagnosis (if known) _____ Date(s) of treatment _____
Provider's Comments _____
- ☐ History of Suicide Attempt(s)
Attempt method(s) _____ Date(s) of attempts _____
- ☐ Current suicidal ideation _____ Yes _____ No Planned method _____
- Need for Psychological Referral _____ Yes _____ No

Provider's Comments _____

Pregnancy History

- ☐ Current pregnancy _____ Yes _____ No _____ Unknown _____ Hysterectomy
☐ Prior pregnancies: Number _____ Live births _____ Abortions _____ Miscarriages _____
- Need for Medical Referral _____ Yes _____ No

Provider's Comments _____

Immunization History

☐ Tetanus:	____ Yes	____ No	____ Unknown	Date _____
☐ MMR:	____ Yes	____ No	____ Unknown	Date _____
☐ Pneumovax:	____ Yes	____ No	____ Unknown	Date _____
☐ HBV:	____ Yes	____ No	____ Unknown	Date _____
☐ HAV:	____ Yes	____ No	____ Unknown	Date _____
☐ HPV:	____ Yes	____ No	____ Unknown	Date _____
☐ Influenza:	____ Yes	____ No	____ Unknown	Date _____

Surgery(ies)

Type(s) _____ Date(s) _____ Provider/Hospital _____

Signature/Credential of Examining Physician

Date of Examination

INITIAL INTAKE FORM

U.S. DEPARTMENT OF JUSTICE

FEDERAL BUREAU OF PRISONS

Facility Name and Address:				
Contract staff completing the interview (print):				
Name of Offender:		Register Number:		
Offender Home Address:	DOB:	SSN:	Race:	Sex:
Religion:	Date and Time of Arrival:			
1. NOTIFICATION IN CASE OF EMERGENCY/DEATH (Offender completes):				
In case of an emergency or my death, I direct that my _____, be notified via information provided below. (relationship)				
_____	_____	_____	_____	_____
(Name)	(Address)	(City)	(State)	

(Telephone Number)				
Name and Telephone Number of Personal Physician:				
2. Status (Contract staff completes)				
Component Assigned: Community Pre-Release Day reporting (circle one) Corrections				
Type of case (BOP or USPO) (BOP cases are in custody and subject to removal to a BOP institution):				
Case Manager assigned:				
3. Signatures (Contract staff and offender completes):				
_____		_____		
Contract staff signature		Date/Time		
_____		_____		
Offender signature		Date/Time		

Record Copy - Facility Director; Copy - RRM (This form may be replicated via computer)

[Name of RRM]

[Addressee]

Re: Request for DNA Collection

Dear [Name of Facility CEO]:

The DNA Analysis Backlog Elimination Act (DNA Act) requires the Federal Bureau of Prisons to obtain DNA samples from all offenders with qualifying offenses. Currently, the Attorney General is authorized to collect DNA samples from individuals who are arrested, facing charges, or convicted or from non-United States persons who are detained under the authority of the United States. See 42 U.S.C. Sec. 14135a(a)(1)(A). An implementing regulation was published in the Federal Register on December 10, 2008 (Vol. 73, No. 238, pp. 74932-74943). The FBI analyzes submitted DNA samples and maintains the results in the Combined DNA Index System (CODIS).

The following [xx] offenders are housed at your facility and are required to provide a DNA sample under the DNA Act. We are asking your assistance with the collection.

Offender Name, Reg. No.

Offender Name, Reg. No.

Included with this letter is/are [xx] DNA Buccal Swab Collection Kits. Instructions for the DNA collections are included in the kits. Also included are DNA fact sheets that may be provided to the offenders to answer any questions they may have. If an offender refuses to consent to the DNA collection, please bring this to the attention of this office as soon as possible.

The offender should be made aware that refusal to consent may result in the offender being temporarily brought back into the physical custody of the Bureau and housed in a Special Housing Unit until the sample is collected.

To receive DNA numbers from Bureau staff for the DNA collected, your staff should contact [xxx] at [xxx] one or two business days before the collection is scheduled. Generating a DNA number during this timeframe will decrease the chance numbers will be generated in error.

Thank you for your assistance with this important matter. Please contact my office at [xxx-xxx-xxxx] if you have any questions.

Sincerely,

Residential Reentry Manager

Bureau of Prisons Offender DNA Sample Collection Fact Sheet

The Bureau of Prisons' (Bureau) current authorities to collect DNA samples from persons are as follows:

- Title 42 U.S.C. Sec. 14135a, Collection and use of DNA identification information from certain Federal offenders;
- Title 42 U.S.C. Sec. 14135b, Collection and use of DNA identification information from certain District of Columbia offenders; and
- Title 28 C.F.R. Part 28.12.

Pursuant to these authorities, the Bureau will collect DNA samples from persons who are:

- Convicted of any federal offense (felony or misdemeanor);
- Convicted of any Uniform Code of Military Justice (military) offense (felony or misdemeanor);
- Convicted of a qualifying D.C. Code offense (as provided at D.C. Code Sec. 22-4151);
- Arrested or facing charges (pretrial offenders); and
- Non-United States persons who are detained under the authority of the United States (including the Bureau) (persons who are not United States citizens and who are not lawfully admitted for permanent residence as defined by 8 C.F.R. Sec. 1.1 (b)).

Bureau Program Statement 5311.01, *Offender DNA Sample Collection Procedures* (effective date Feb. 1, 2011), provides the following:

- Collection of DNA via buccal swab has been incorporated into the collection method.
- Collection of DNA from juveniles is permitted.
- Consequences for refusing to provide a DNA sample include an incident report(s), progressive administrative sanctions, and possible criminal prosecution.
- If efforts to obtain a DNA sample fail, or the offender is approaching his/her release date, standard Use of force protocols (including standard confrontation avoidance procedures) must be invoked, using only the amount of force necessary to obtain a DNA sample. In instances where calculated use of force is necessary, it is recommended that a blood sample be obtained.

Individualized Program Plan

Day Reporting Center

(Available in Word from RRM Office)

Name:	DRC Facility/Code:
Register Number:	Telephone:
Arrival Date:	Fax:
HCED Date:	Status: ☐ BOP or ☐ USPO
Projected Release Date/Method:	
Sex: ☐ Male or ☐ Female	Driver's License Number/State:
Date of Birth:	FBI Number:
CIM Status:	Other IDs:
Orientation Completed: ☐ Yes or ☐ No	
Date Completed:	
Sentence/Supervision:	
Special Conditions of Supervision:	
Release Residence Address:	Release Employer Name/Address:
Telephone:	Telephone:
Primary Emergency Contact:	Secondary Emergency Contact:
Address:	Address:
Telephone:	Telephone:
Release Address Family Ties/Support:	
USPO Name:	
Sentencing District Address:	
Phone/Fax:	
Subject to 18 U.S.C. 4042(B) Notification: ☐ Yes or ☐ No	DNA Required: ☐ Yes or ☐ No

Name:

Registration Number:

EDUCATION DATA – prior and current

VOCATIONAL/CAREER: - prior and current

WORK DATA - (Prior and current):

Prior Work History:

Job Search History:

Employment (date of hire, hours, position, employer name and address/phone)

Legal Notification Date:

On-Site Visit Date:

FINANCIAL RESPONSIBILITY: Separate Budget Worksheet must be used

Budget/Financial Plan Active: ☐ Yes or ☐ No

Budget/Financial Plan Starting Date:

Court Ordered Obligations: ☐ Yes or ☐ No

Comments:

DISCIPLINE DATA – RRC Information

Date, Prohibited Act, Sanction:

INTERPERSONAL:

Relationships:

Family Ties/Support system:

Parental responsibility:

Comments:

Name:

Registration Number:

AFFORDABLE HEALTH CARE ACT:

Affordable Health Care Application:

ACA information distributed during intake: ☐ Yes or ☐ No

Internet and phone access available to facilitate ACA access? ☐ Yes or ☐ No

ACA survey prior to release? ☐ Yes or ☐ No

Progress and Goals:

PHYSICAL HEALTH:

Physical health concerns:

Prescribed medication:

Progress and Goals:

MENTAL HEALTH:

Mental health assessment:

Mental health treatment:

Progress and Goals:

OTHER TREATMENT PROGRAMMING:

Sex offender treatment

Substance abuse treatment:

Other treatment:

Progress and Goals:

COGNITIVE:

General behavior:

Criminal behavior:

Progress and Goals:

HC PROGRAMMING:

Family meeting: ☐ Yes or ☐ No

Meeting date:

Home visit: ☐ Yes or ☐ No

Home visit date:

Name:

Registration Number:

HC request: ☐ Yes or ☐ No

HC request date:

HC approval: ☐ Yes or ☐ No

HC approval date:

Comments:

PASSES/FURLOUGHS:

List any passes/furloughs that were denied, provide explanation for denial:

RELEASE PLANNING:

Approved release plan address/phone:

Release plan support system (name of person, address, phone, relationship to the offender)

Other comments:

SIGNATURES/DATE:

Case Manager Printed Name	Case Manager Signature/Date	Offender Signature/Date

Next Review Due Date:

URINALYSIS PROCEDURES

Testing Summary:

The Residential Reentry Management Branch is aligning the drug and Alcohol Testing Surveillance Program with the BOP institutions Drug and Alcohol Testing Surveillance Program. This attachment provides detailed instruction for the Residential Re-entry Centers.

- All urine testing will be conducted on an unscheduled basis in accordance with urinalysis procedures.
- The drug and alcohol testing surveillance program can utilize laboratory-based testing for screening and confirmations **OR** on-site test cups for screening at the point of collection and laboratory-based confirmation testing for any screen positive at the point of collection.

On-Site Test Cup

The manufacturer of the on-site test cups must be an FDA Licensed Medical Device Manufacturer. The contractor will maintain certification documents and evidence that the manufacturer meets all specifications in **Attachment G2 - On-site Test Cup Maximum Screening Cut-Off Level**.

1. Basic Screen Procedures

On-site Test Cup Screening Tests - The cup must be constructed of clear plastic with a screw top lid which will not leak during air/ground shipping. The test cup must be integrated to allow for collection and testing of urine for multiple drugs simultaneously, without a separate testing device. Once the specimen is collected and the lid installed on the cup, no other manipulation of the urine is required such as pouring, tipping, tilting, turning, inserting, and turning a key, or inserting a test card, pipette, dropper, or dipper.

The on-site test cup must have the capability of detecting a minimum of fourteen (14) different drugs at the same time. The BOP requires, at a minimum, a 14-panel cup with the designated drugs outline in **ATTACHMENT 2: On-site Test Cup Screening Cutoff Levels and Laboratory-Based Confirmation Testing Levels**. The BOP reserves the right to change and specify the type of drugs/test strips and cut-off levels which will be integrated into the on-site test cup based on the facility's offender drug abuse history and regional trends. If a change is necessary, the BOP will provide 90 days advance notice of the change and an additional 30 days to implement the change.

The on-site test cup must have a minimum fill line (at least 30mL) clearly displayed on the outside of the cup to ensure sufficient specimens are collected.

The cup must have a temperature label on the cup, which provides color-coded indication for temperatures ranging from 90°F/32°C to 100°F/38°C in 1- or 2-degree increments.

A label or other pull strip in order to conceal the results from offenders at the time of testing and shall not leave a residue or otherwise make the test panel unreadable shall cover the test panel results. The test results must appear within five minutes, then remain stable, and be accurately read up to 30 minutes after the specimen is provided in the cup.

Each sterile on-site test cup will be provided in a sealed bag with a lot number, an expiration date, the drugs/cut-off levels the on-site test cup tests for, desiccant, which maintains relative humidity inside the sealed bag within the manufacturer's recommended specifications, and instructions for use of the on-site test cups on outside of the bag. The product must have a minimum shelf life of 12 months from the date of manufacture.

The contracted Laboratory supplied Chain of Custody forms shall consist of two (2) self-carbonized parts (an original and one copy). Contract staff will use the forms to record the positive specimen identification information, retain the copy, and send the original to the confirmation lab, along with the urine specimen.

2. Confirmation of Positive Tests

On-site Test Cups - For all test cups that read positive and require lab confirmation, the laboratory will provide an identification label (with unique specimen identification number) to seal the lid of the cup, a 2-ply donor offender chain of custody form with preprinted and matching specimen identification number, and a sealable 2-pouch clear shipping bag.

3. Test Panels, Sensitivity and Accuracy

To prevent reagent leaching, each drug test (one drug per strip) must be in its own individual test strip chamber/channel must have a control line indicator to determine if the test has functioned properly.

The manufacturer must ensure the contractor is provided with an up-to-date list of cross-reacting drugs, which will be detected by the on-site test cup. Manufacturer must also provide a list of drugs, which will not be detected and will not produce a positive result for the category of drugs specified in Attachment G2.

The on-site test cups must have an accuracy rate of at least 97% as compared to screening tests by DHHS certified Enzyme Multiplied Immunoassay Technique (EMIT) or other DHHS certified comparable testing technology (CERT). Results and documentation must be provided to verify independent tests have been conducted to obtain those accuracy rates. The accuracy rate must not change due to collection site elevation/altitude or humidity levels.

4. Support

The manufacturer must be able to provide free training twice per year for contract staff administering the test, at the request of any RRC contractor for which the cups are provided. This may be accomplished through on-site visits or through video teleconferencing. The manufacturer may provide a training video available to the RRC contractor.

The manufacturer must be able to provide technical assistance as needed by the RRC contractor.

For security purposes, and to maintain the integrity of the testing program, the product being offered must not be sold over the counter or over the internet.

The manufacturer will provide subject matter expert testimony upon request from the RRC contractor to address issues such as testing methodologies, testing results, testing cut-off levels, accuracy of on-site test cups, and other issues.

5. Quality Control/Manufacturing Practices

The RRC must ensure that the manufacturer of the on-site test cups provides a quality and properly functioning product. The manufacturer shall abide by all applicable federal laws and regulations.

6. Other Requirements

The laboratory must perform the confirmation test within 48 hours of receipt. Urine specimens testing positive must be retained by the laboratory for minimum of 30 days for possible retesting, if requested.

Urinalysis Laboratory-Based Services

1. URINALYSIS TESTING SPECIFICATIONS

The laboratory must comply with all specifications contained herein and all applicable local, state, and federal law, as indicated in 42 CFR Part 493, Laboratory Requirements, to engage in urine drug testing for federal offenders. The RRC contractor will maintain certification documents and evidence the laboratory meets all specifications in Attachment G1 & G2. The urinalysis laboratory will detect and identify the drugs and/or metabolites by basic screen and confirmation at the minimal levels or lower as shown in Attachment G1 & G2.

Urine samples submitted for testing will contain the laboratory's required minimum amount of urine, ordinarily 30 milliliters.

A positive written report from the laboratory for any of the drugs listed in Attachment G1 & G2 indicates that the particular drug has been identified by an initial screening test as positive and then confirmed by a laboratory confirmation methodology procedure.

Retesting at the offender's request is not permitted. If necessary, due to litigation, the laboratory must provide a qualified expert witness to testify as to laboratory procedures employed as well as to accuracy and reliability of test results. Additionally, the laboratory must be able to prove chain of custody. RRM's will review these findings during monitoring visits.

2. Specifications of Methodology

Sensitivity - The laboratory will have the capability to detect and identify certain drugs and metabolites by basic screen at minimal levels, or lower, as indicated in the screening test levels.

3. Basic Screening Procedures

- a) Laboratory-Based Screening Tests - All laboratory-based primary initial screen tests will be by Department Health and Human Services (DHHS) certified Enzyme Multiplied Immunoassay Technique (EMIT) or other DHHS certified comparable testing technology (CERT) as indicated in Attachment G
- b) 1. All testing will be performed according to manufacturer specifications for all requests and instruments, as in FDA approved package inserts or appropriate manufacturer accreditation body which has reviewed and accepted the laboratory modified protocol.

- c) Confirmation of Positive Tests - The approved methods of confirmation of specimens testing positive are listed in Attachment G1 & G2. Confirmation tests must be completed on all initial screen-positives. The confirmation testing shall be capable of providing quantitative information and confirmation levels as specified in Attachment G1 & G2 of this Statement of Work. Examples of scientifically recognized DHHS methods of testing are Gas Chromatography/Mass Spectrometry (GC/MS), Gas Chromatography/Tandem Mass Spectrometry (GC/MS/MS), two-dimensional Gas Chromatography/Mass Spectrometry (GC/MS/MS) or LC/Tandem Mass Spectrometry (LC-MS/MS). No substitutions can be made to the methods.
- d) Confirmation Only Test Panels and Sensitivity - The Chain of Custody form, which will accompany each specimen sent by the RRC contractor, will indicate the drug(s) the RRC contract staff is requesting confirmation. The RRC Contractor may request confirmation for more than one drug from a single on-site test cup specimen. Confirmation will be accomplished for drugs at the lowest cut-off level scientifically possible by the laboratory's instrumentation and will not be higher than the specified levels listed in Attachment G2.
- e) Special Screening Tests and Follow-up Confirmation Tests - Occasionally, an RRC Contractor may request special screening tests, with some requiring follow-up confirmation tests for any one or even all of the drugs listed in Attachment G1, as well as steroids, at the minimum cut-off levels or lower.

The drug(s) to be screened for will be indicated on the Chain of Custody form checked under other and the drug to be tested written in the blank space. If an RRC Contractor requests special screening be conducted for other than those listed in Attachment G1, the RRC Contractor will contact the laboratory to request the special screening test. A scientifically recognized DHHS method of testing, or Enzyme Multiplied Immunoassay Technique (EMIT), or other DHHS certified comparable testing technology (CERT) will be used as the initial screening method.

The absence of identification of which drugs to be screened and/or confirmed on the Chain of Custody forms does not constitute a "no test".

4. Other Requirements

The laboratory must perform the test within 48 hours of receipt. Urine specimens testing positive must be retained by the laboratory for minimum of 30 days for possible retesting, if requested.

5. Special Tests

The laboratory must have the capability to conduct steroid testing and will provide the RRC Contractor with a list of those steroids which the laboratory is certified to test for and the cut-off levels upon request.

6. Laboratory-Based Testing/Screening Procedures

a) Adulteration: All laboratory-based screening specimens, including special testing requests, submitted by an RRC contractor shall be automatically screened for adulteration, substitution, and dilution using DHHS certified laboratory procedures for measuring specific gravity, creatine, and pH. The laboratory must report to the RRC Contractor, any specimen suspected of adulteration and the suspected means or procedure used to adulterate the specimen.

If the laboratory suspects a urine sample contains an adulterant; for example, urine sample smells like bleach or contains foreign objects or discoloration, the RRC Contractor does not expect the lab to perform confirmation testing. However, the laboratory shall submit a report to the RRC Contractor's Facility Director via email informing the RRC Contractor of the laboratory's findings.

b) Retest: The RRC Contractor may request the laboratory to retest a specimen previously tested and reported.

c) Quality Control: The BOP reserves the right to conduct random announced/unannounced visits to the laboratory, using an industry recognized contractor/person(s) considered to be an expert in the field of laboratory urine testing, to ensure proper NLCP or CAPDT testing procedures are being followed. The laboratory must be certified in accordance with NLCP or CAPDT rules and regulations and documentation of the certification will be provided.

7. Reporting of Results

At the completion of the laboratory tests, the laboratory shall send the originating RRC Contractor facility the results, both

negative and positive, within 24 hours via email in a PDF format.

The laboratory may also make test results available to the designated staff by way of a secured web site. Results will be maintained in a database by the laboratory for a minimum three years.

Each urine specimen will require an individual report, or secure web site entry, from the laboratory regarding the results, indicating whether drugs were present or not (positive or negative), based on the cut-off levels stated in Attachment G1 & G2 of this attachment, and the type of drug(s).

Each result report, or secure web site entry, will have at a minimum, the name of the RRC Contractor Facility, the unique specimen identification number which is on the Chain of Custody form and on the seal of the on-site test cup lid, type of specimen tested, the drugs which were tested and/or screened and tested for, the positive or negative results of those tests, positive results will be displayed with quantitative values, reason for no test if applicable, date and time of collection, receipt of specimen in the laboratory and laboratory result reporting.

8. Retention of Negative Urine Specimens

The RRC may request the lab to retain all urine specimens sent in for screening, confirmation testing, or both, which confirm negative to be retained for seven days after the 24-hour notification of the results. This will allow the RRC Contractor to request a retest of the sample.

9. Retention of Positive Urine Specimens

Specimen confirmed positive by a scientifically recognized DHHS method of testing shall be retained for a minimum 60 days by the laboratory in appropriate storage ensuring the specimen is preserved in a condition suitable for retesting.

The laboratory shall maintain all positive reports for a period of 3 years.

10. No Test Criteria

Examples of conditions, which warrant a "no test" condition from the laboratory, are:

- a) Specimens without the minimum amount of urine required to complete a proper test due to leakage, which occurred during shipment or insufficient level of urine provided by the donor offender.

If leakage is noted, every attempt will be made to conduct the requested test with the remaining urine in the cup or using the urine, which may have leaked but still contained in the sealed two-part bio bag and/or by extracting the urine from the absorbent pad in the bio bag.

b) Specimen with a tampered seal (the tamper-resistant seal must be intact for testing to be performed).

c) Specimens with tamper-resistant seals not dated and initialed by the donor/offender (tamper-resistant seals must be initialed and dated for testing to be performed).

d) Specimens that the RRC Contractor requests confirmation test only and the laboratory determines the specimen visibly appears adulterated, diluted, or substituted will be screened/tested accordingly as outlined in Laboratory-Based Testing/Screening Procedures - Adulteration, but will not be screened for any other drugs or steroids.

If the adulteration test proves positive, this will be declared a "no test" because the confirmation testing could not be conducted.

e) Specimens which indicate a negative result at the testing site, but the RRC Contractor has sent in for further screening and confirmation request will be automatically screened for adulteration, dilution, and/or substitution.

If this test produces a positive result for adulteration, this will be declared a "no test" since the screening for the drugs and/or steroids, depending on the institution's request, could not be completed.

f) The laboratory shall report each "no test" and the specific reason back to the RRC Contractor in the same manner as reporting the positives and negative results as outlined in Reporting Results.

g) A Chain of Custody form not completely filled out does not constitute a "no test" criteria. Even if no information is filled out on the form, the laboratory will still have the pre-printed RRC Contractor Name and Address, the account number, and the unique specimen ID number to send the results back to the RRC Contractor Facility.

If the RRC Contractor failed to identify on the form, the confirmation tests required and/or special screening and confirmation test required, then the laboratory will conduct screening and confirmation for all the drugs and the cut-off levels as outlined in Attachment G1, and report those results to the requesting RRC Contractor.

11. Standard Procedures for Collecting Urine Surveillance Samples -

Laboratory-Based or On-site Test Cup

a. Staff of the same gender as the offender being tested will directly supervise the giving of the urine sample. To eliminate the possibility of a diluted or adulterated sample, staff will keep the offender under direct visual observation until a complete sample is furnished.

If the offender is unable to provide the sample, at the time of the request, staff will continue direct supervision for a two-hour period. To assist the offender in giving the sample, staff will offer the offender sufficient water (minimum of 12 oz.) during the two-hour time period to aid in urination.

If an offender is unwilling or unable to provide a urine sample within two hours of a request, staff will file an incident report. No waiting period or extra time will be allowed for an offender who directly and specifically refuses to provide a urine sample.

Staff will visually witness the collection of urine into the specimen container. As soon as the sample has been collected, staff will secure the specimen. No unauthorized persons or offenders may be involved in the handling of supplies or the collecting, recording, mailing, or processing of test results under any circumstances.

If an on-site test cup is utilized for the screening test, it is allowable for the on-site test cup to be used as a collection cup, on-site screening test and transportation cup to the laboratory in the event of a screen positive on the on-site screening test device.

On-site screening test will not be used as the sole evidence in issuing an incident report for positive use. An incident report should not be issued until a final laboratory report of a confirmation test is reported.

b. Offenders will be thoroughly searched to detect any device designed to provide a urine substitute or possible contaminant and will thoroughly wash their hands prior to providing a sample.

c. Urine samples will be kept under direct RRC Contractor staff observation and control at all times, both before and after the donor offender furnishes the urine sample until moved to a secured area where the urine samples will be stored until mailing. This area should be designated by the Facility Director and will be accessible to a very limited number of RRC Contractor staff. Under no circumstances will offenders have access to this area.

d. All urine samples will be mailed to the testing laboratory no later than 24 hours after collection, (excluding holidays and weekends).

e. Each RRC Contracted facility will maintain a Drug Test Log documenting all urine testing and will be available for review by the RRM when requested. The log will indicate donor offender name, RRC Contractor staff (collector) name, date of collection, time of collection, type of test performed, test result and if offender refused to cooperate.

f. When the offender reports for testing RRC Contractor staff will:

- (1) Make a positive picture identification of the offender;
- (2) Donor offender will thoroughly wash their hands;
- (3) Collect the sample from offender under direct observation;
- (4) Assign the sample a urine sample identification number from the chain of custody form provided by the laboratory;
- (5) Seal the urine sample with a bottle label that is affixed to the bottom of the chain of custody form in the presence of the offender donor; have the donor initial and date the bottle label seal ONLY after the label has been affixed to the urine sample;
- (6) For a laboratory-based or on-site test cup urine collection, complete the chain of custody form to include, collection site information, collection information (i.e., temperature, observed collection, type of sample collected [single or split], donor printed name, signature and date, collector printed name, signature, and date).
- (7) Once Chain of Custody is completed and the on-site test cup device is used, have the offender donor step away from the testing area while the contract staff reads the screening test results. This avoids offender donor/RRC Contractor staff confrontation. The RRC Contractor staff performing the on-site test cup should let the testing device out of their sight anytime during the testing process.

(8) If using the on-site test cup device, and the urine sample is negative, circle the Negative and place the Chain of Custody form in the offender donor's file as documentation of the drug test; dispose of the urine sample in the toilet and the on-site test cup in the trash can;

(9) If using the on-site test cup device, and the urine sample screens positive for drug(s), indicate on the Chain of Custody form, by checking or circling the drug(s) that the laboratory will perform confirmation testing on.

(10) For laboratory-based or on-site test cup urine samples, place the sealed urine sample in the front pouch of the bio bag and the completed chain of custody form in the back pouch of the bio bag; seal the bio bag and place the sample in a secured area until the urine sample is shipped to the laboratory.

(11) Record the donor offender's name, RRC Contractor staff (collector) name, date, time, type of test performed, test result and if offender refused to cooperate on the Drug Testing Log.

(12) Positive Tests - For an incident report charging use of a particular drug to be justified, the minimum waiting period between successive positive samples, as outlined below in Detection Periods for Selected Drugs, must be observed. In addition, waiting periods also apply to offenders who initially arrive at the facility.

When a positive result is received, and an incident report written, a photocopy of both the copy of the Chain of Custody form and the positive laboratory report will be attached to the incident report and made a part of the disciplinary record.

When a positive finding cannot be explained, RRC staff will thoroughly investigate the positive urine test result to validate the positive urine test result to validate the positive finding. The RRC Contractor will report all unauthorized positive test results to the RRM on the day received.

Detection Periods for Selected Drugs

The time periods below are estimates of the maximum lengths of time, after last use, that a person's urine would be positive for a particular drug. These periods also represent the minimum waiting periods between samples on which successive disciplinary actions for the same drug ordinarily may be based.

For example, ordinarily at least 30 days must lapse between urine collection dates before disciplinary action may be taken for a second THC positive. The offender could, however, be retested within this 30-day period and disciplinary action could be based on positive results for drugs other than THC.

Time	Drugs
3 Days	Amphetamines, Methamphetamine, Cocaine, Cocaine Metabolite, Buprenorphine, Fentanyl, K2/Spice (Synthetic Marijuana), MDPV (Bath Salts)
5 Days	Methadone and Methadone Metabolite
6 Days	Morphine, Codeine, Opiates, Meperidine (Demerol), Pentazocine (Talwin), Propoxyphene (Darvon), Benzodiazepines Ecstasy (MDMA), Oxycodone
11 Days	Barbiturates and Phencyclidine (PCP)
14 Days	Phenobarbital
30 Days	THC

ATTACHMENT G1: Laboratory Screening and Confirmation Testing

Drug/Substance	Screening Method	Maximum Cut-Off Level	Confirmation Method	Maximum Cut-Off Level
Amphetamines	EMIT/CERT	300 ng/mL	GC/MS or LC-MS/MS	75 ng/mL
Barbiturates (Amorbarbital, Butabarbital, Butalbital, Pentobarbital, Phenobarbital, Secobarbital)	EMIT/CERT	200 ng/mL	GC/MS or LC-MS/MS	50 ng/mL
Benzodiazepines (Alprazolam)	EMIT/CERT	300 ng/mL	GC/MS or LC-MS/MS	25 ng/mL
Cocaine (Benzoyllecgonine)	EMIT/CERT	150 ng/mL	GC/MS or LC-MS/MS	12 ng/mL
THC	EMIT/CERT	15 ng/mL	GC/MS or LC-MS/MS	4 ng/mL
Methamphetamines	EMIT/CERT	300 ng/mL	GC/MS or LC-MS/MS	75 ng/mL
Morphine	EMIT/CERT	300 ng/mL	GC/MS or LC-MS/MS	25 ng/mL
Oxycodone (Oxymorphone)	EMIT/CERT	300 ng/mL	GC/MS or LC-MS/MS	25 ng/mL
Opiates (Codeine, Hydrocodone, Hydromorphone)	EMIT/CERT	300 ng/mL	GC/MS or LC-MS/MS	25 ng/mL
Phencyclidine (PCP)	EMIT/CERT	100 ng/mL	GC/MS or LC-MS/MS	10 ng/mL
MDPV (Bath Salts)	EMIT/CERT	15 ng/mL	GC/MS or LC-MS/MS	9 ng/mL
Fentanyl (Nor-Fentanyl)	EMIT/CERT	2 ng/mL	GC/MS or LC-MS/MS	1 ng/mL
Synthetic Cannabinoids (K2/SPICE)	EMIT/CERT	15 ng/mL	GC/MS or LC-MS/MS	LOD
Buprenorphine (Nor-Buprenorphine)	EMIT/CERT	5 ng/mL	GC/MS or LC-MS/MS	4 ng/mL

ATTACHMENT G2: On-site Test Cup Screening Cutoff Levels and Laboratory-Based Confirmation Testing Levels

Drug/Substance	On-site Test Cup Maximum Screening Cut-Off Level	Laboratory-Based Confirmation Method	Laboratory-Based Maximum Cut-Off Level
Amphetamines	300 ng/mL	GC/MS or LC-MS/MS	75 ng/mL
Barbiturates (Amorbarbital, Butabarbital, Butalbital, Pentobarbital, Phenobarbital, Secobarbital)	300 ng/mL	GC/MS or LC-MS/MS	50 ng/mL
Benzodiazepines (Alprazolam)	200 ng/mL	GC/MS or LC-MS/MS	25 ng/mL
Cocaine (Benzoylecgonine)	150 ng/mL	GC/MS or LC-MS/MS	12 ng/mL
THC	50 ng/mL	GC/MS or LC-MS/MS	4 ng/mL
Methamphetamines	300 ng/mL	GC/MS or LC-MS/MS	75 ng/mL
Morphine	300 ng/mL	GC/MS or LC-MS/MS	25 ng/mL
Oxycodone (Oxymorphone)	300 ng/mL	GC/MS or LC-MS/MS	25 ng/mL
Opiates (Codeine, Hydrocodone, Hydromorphone)	300 ng/mL	GC/MS or LC-MS/MS	25 ng/mL
Phencyclidine (PCP)	25 ng/mL	GC/MS or LC-MS/MS	10 ng/mL
MDPV (Bath Salts)	300 ng/mL	GC/MS or LC-MS/MS	9 ng/mL
Fentanyl (Nor-Fentanyl)	100 ng/mL	GC/MS or LC-MS/MS	1 ng/mL
Synthetic Cannabinoids (K2/SPICE)	50 ng/mL	GC/MS or LC-MS/MS	LOD
Buprenorphine (Nor-Buprenorphine)	10 ng/mL	GC/MS or LC-MS/MS	4 ng/mL

REQUIRED FIRST AID KIT CONTENTS

First Aid Kits located within the DRC must contain at a minimum:

- 1 Elastic bandage wrap, 2" x 5 yds.
- 25 Visible blue bandages, metal detectable, 1" x 3"
- 20 Knuckle visible blue bandages, metal detectable
- 20 Fingertip visible blue bandages, metal detectable
- 1 Triangular sling bandage, 40" x 40" x 56"
- 10 Gauze dressing pads, 2" x 2"
- 10 Gauze dressing pads, 3" x 3"
- 1 Conforming gauze roll, 2"
- 1 Conforming gauze roll, 3"
- 1 Trauma pad, 5" x 9"
- 1 Cloth first aid tape roll, 1" x 5 yds
- 10 Alcohol cleansing pads
- 2 BZK antiseptic towelettes
- 6 Burn relief gel packs, 3.5 g each
- 10 First aid/burn cream packs, 0.9 g each
- 10 Antibiotic ointment packs, 0.9 g each
- 1 First aid tape roll, 1/2" x 10 yds.
- Scissors, 1 pair
- 2 Eye wash solutions, 0.5 oz. each
- 10 Moleskin blister prevention bandages, 2" x 2"
- 1 American Red Cross Emergency First Aid Guide
- Latex-free vinyl gloves, 2 pairs
- Stainless steel tweezers, 1 pair
- 1 CPR face shield and vinyl gloves set

BP-A0460

CONDITIONS OF HOME DETENTION CDFRM

JU/&

U.S. DEPARTMENT OF JUSTICE
BUREAU OF PRISONS

FEDERAL

Resident

Register Number

I understand that my placement on Home Detention status is a privilege which may be revoked by the Community Corrections Manager (CCM). I understand that any violation of Home Detention Conditions, or conduct or activity which reflects a disregard for the rights of others, shall be sufficient cause to revoke my Home Detention and/or terminate my Residential Re-Entry Center (RRC) program participation

I understand and agree to abide by the following conditions during my period of Home Detention:

1. I will reside at my approved residence at
.
2. I will conduct myself in a lawful manner.
3. I will accept phone calls from RRC/Probation Staff, verifying my presence at my home and at my job site. I agree to maintain a telephone at my place of residence without "call forwarding," or "three-way calling" for this period and will, when requested, provide copies of my telephone bill to the Center/Probation staff. I also agree that if my confinement is to be electronically monitored, I will wear any electronic monitoring device required, follow procedures specified, and comply with any telephone and computer access restrictions as they apply to the monitoring device requirements.
4. I will accept the visits of RRC/Probation personnel to my job site and home.
5. I will return to the RRC/Probation at least _____ weekly for routine progress reviews and program participation, and more often if instructed to do so.
6. I understand I must continue mental health/psychiatric treatment, substance abuse treatment, sex offender treatment while on Home Detention.
7. I will not own or possess any deadly weapon or knowingly be in the company of a person possessing the same.
8. I will remain steadily employed at
and will not change employment without prior approval of RRC/Probation staff
9. I will not knowingly associate with persons having a criminal record, nor frequent places where illegal activities are conducted.
10. I will not drink alcoholic beverages of any kind; nor will I enter any establishments, such as bars or liquor stores, where the sale and/or consumption of alcoholic beverages on the premises is the primary business of the establishment.
11. Except as medically authorized, I will not use or possess narcotics, or other controlled substances, nor be in the presence of persons possessing the same.
12. I agree that during the Home Detention period, I will remain at my place of residence, except for employment, unless I am given specific permission to do otherwise.
13. I will not own or drive a motor vehicle without proper authorization.
14. I will abide by special instructions given to me by the RRC/Probation, e.g., electronic monitoring program participation.
15. I will submit to urinalysis or alcohol testing as requested by the RRC/Probation. I understand that ingestion of poppy seed food products may result in positive test results for unauthorized drug use and is therefore prohibited.
16. I agree to pay subsistence for the cost of my participation in Home Detention.
17. I understand that I am personally responsible for all costs of my housing, meals, and general subsistence, while I am on Home Detention.

I fully understand that willful failure to report as required, unauthorized change of residence, employment, or failure to otherwise inform Center staff of my whereabouts, could constitute an escape from federal custody.

Resident's Signature

Date

Approved

(DRC

Director)

Approved

(RRM)

Record Copy - To CCM - Community Corrections Manager; Copy - To RRC - Reside